

DEBRE BIRHAN UNIVERSITY

COLLEGE OF LAW



**Rationalizing special protection of the Rights of vulnerable Groups in
campus life:**

The case of Debre Birhan University.

**A Thesis Submitted in Partial Fulfillment of the Requirements for the Degree of
Bachelor in Law (LL.B) to the College of Law, Debre Birhan University.**

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**February 15, 2016
Debre Birhan Ethiopia**

Declaration

We, hereby, declare that this research is original and has never been presented in any other institutions to the best of our knowledge. We also declare that any information used in this work has been duly acknowledged.

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Abstract

As many studies shown, unless vulnerable people are brought in the development stream, it will be impossible to cut poverty in half by 2015. The sustainable and poverty reduction strategy of Ethiopia (2005) also indicates that education is a key sector in poverty reduction.

The right of citizens to equal access to publicly funded services and support to be given to accommodate the need of vulnerable groups is clearly stipulated in the constitution (FDRE, article 41(5) and 35(3)). The education and training policy (1994) further consolidate this constitutional notion. In view of these constitutional rights and policy direction, there is a long way to go to address the need of vulnerable group not only in the institution of higher education but also in walks of life in the country.

This study argued that the present scenario of most higher learning institution marginalize vulnerable learners either by blocking their admission or not providing necessary back up support during their study years. In this study an attempt is to highlight the nature of problems faced by vulnerable students in Debra Birhan University and efforts made to address the issues. Accordingly, throughout this study there are a lot of problems identified particularly, a problem of infrastructural building, a problem of teaching-learning process, lack of material to provide an adequate service for vulnerable groups, and lack of awareness about vulnerability and etc.

Acknowledgement

Before all, we wish to thank almighty God for helping us to achieve, all what we have achieved. Next our family we cannot be done counting your kindness and financial support.

Following this we are indeed grateful to our advisor Atikilt Fetene for her unreserved assistance giving us precious comments and guidance from the inception of the research up to final.

We would like to thank the concerned institution, for giving us viable information and also we would like to thanks all the staff members of library for their kindness and courtesy hospitality.

Finally, we would like to extend our gratitude to Debra Birhan University, school of law, which is responsible for the realization of this paper as well as our soon to be a law degree.

Acronyms /List of abbreviation/

AAU	Addis Ababa University
ACHPR	African Charter on Human and People Rights
AU	African Union
CAT	Convention Against Torture
CEDAW	Convention on Elimination of all forms Discrimination Against Women
CERD	Convention on the Elimination of Racial Discrimination
CESCR	Committee on Economic, Social and Cultural Rights
CGPA	Cumulative Grade point Average
CRPD	Convention on the Right of Person with Disabilities
DBU	Debra Birhan University
DPI	Disabled Person International
EFA	Education For all
EHEECE	Ethiopian Higher Education Entrance Certificate Examination
ESCWA	Economic and Social Commission for Western Asia
FDRE	Federal Democratic Republic of Ethiopia
HEIS	Students of Higher Education Institution
HIV/AIDS	Human Immune Virus/ Acquired Immune Deficiency Syndrome
ICCPR	International Convention on Civil and Political Rights
ICESCR	International Convention on Economic, Social and Cultural Rights
ICRC	International Convention on Child Rights
ILO	International Labor Organization
MDG	Millennium Developmental Goals
NGO	Nongovernmental Organization
OHCHR	Office of United Nation High Commissioner for Human Rights
PWDS	Person with Disability
RA	Rehabilitation International
SWDs	Students with Disabilities
UDHR	Universal Declaration of Human Rights
UN	United Nations
UNESCO	United Nation Educational, Scientific and cultural Organization
UNGA	United Nation General Assembly
WBU	World Blind Union
WFD	World Federation of the Deaf

WFDB	World Federation of the Deaf-Blind
WHO	World Health Organization
WNUSP	World Network of User and Survivor of Psychiatry
WPA	World Program of Action

List of Tables

Table 1 Regular students of DBU registered from 1999-2008 EC.

Table 2 number of graduates from DBU from 2001-2007EC.

Table 3 Number of students voluntarily exposed themselves to HIV/AIDS test.

Table of Contents

Content	Page
Abstract	I
Acknowledgements.....	II
Acronyms.....	III
List of Tables.....	V
Table of contents.....	VI

CHAPTER ONE

1.1 Background of the Study.....	1
1.2 Statement of the Problem.....	2
1.3 Objectives of the Study.....	2
1.3.1 General Objective.....	2
1.3.2 Specific Objectives.....	2
1.4 Research Questions.....	2
1.5 Significances of the study.....	3
1.6 Research Methodology and sources of Data.....	3
1.6.1 Methods of Data Gathering.....	3
1.6.2 Data Sources.....	3
1.6.2 Population and Sampling Techniques	4
1.6.3 Data Analysis.....	4
1.7 Scope of the Study.....	4
1.8 Limitations of Study.....	4
1.9 Organization of the Study.....	5

Chapter Two:

Literature Review	6
2.1. Definition of Vulnerability	6
2.2. Vulnerability as a Heuristic device.....	7
2.3. Human Rights Law and Vulnerability.....	8

Chapter Three

International, Regional, and National Legal Frameworks on Protection of the Rights of Vulnerable Groups 11

3.1 General Overview about Women.....	11
3.2. What necessitates the granting of special protection for women?	11
3.3The rights of education of women under international and national instruments.....	12
3.3.1 Under International instruments.....	12
3.3.2 Regional instruments.....	14
3.3.3 National instruments.....	14
3.4General overview about the persons with disabilities.....	16
3.5 Protection of the rights of disabled persons in international and national legal instruments.....	19
3.5.1 International Human Rights Standards.....	19
3.5.2 National legal frameworks	24
3.6 Rights to education of Persons with Disabilities under international as well as national legal instruments.....	25
3.6.1 International instruments.....	25
3.6.2. National instruments.....	27
3.7 HIV/AIDS Victims.....	28

3.7.1 General overview.....	28
3.7.2 International commitment to protect the rights HIV/AIDS Victims.....	29
3.8 Rights of HIV/AIDS Victims under International laws instruments	
HIV Positive Persons and AIDS Victims.....	30
3.8.1 International Human Rights Standards.....	30
3.9 The right of education of HIV/AIDS Victims HIV positive person.....	32
3.9.1 International Instruments.....	32
3.9.2 National instruments.....	33

Chapter Four

The protection of the Rights of vulnerable groups in Ethiopian Higher Education Institution: The case of Debre Birhan University.....

4.1 Women in higher education institution.....	34
4.2 General overview of HIV/AIDS infected students in higher education institutions in Ethiopia.....	35
4.3 Overview of students with disability in Ethiopian Higher Education Institutions.....	36
4.4 The protection of the rights of vulnerable groups in Ethiopian higher education institutions: the case of Debre Birhan University.....	37
4.5 Documentary information and analysis of data.....	38
4.5.1 Gender Disparity in Enrolment.....	39
4.5.2 Gender Disparity in Academic Dismissal.....	40
4.5.3 Gender Disparity in Academic Performance.....	40
4.5.4 Gender Disparity in Graduation	41
4.6 Finding and discussion on the rights of women.....	42
4.7 Commitment of DBU towards the protection of the rights of female students.....	44
4.8 Finding and discussion on the right of HIV/AIDS victims.....	45
4.9 Students with disabilities in DBU.....	46
4.9.1 Finding and Discussion on the rights of SWD's.....	47
4.9.2 Analysis of findings on the rights persons with disability.....	49
4.10 Findings and discussion with regard to vulnerable groups in general.....	53
4.11 Situational Analysis of DBU.....	53
4.12 Violated rights of vulnerable groups in DBU.....	56

4.13 Whether or not a legal as well as institutional framework of DBU grants a special protection for vulnerable groups.....	57
4.14 Is there a gap in implementation?	58
4.15 Trend of A.A University.....	59
Chapter Five	
Conclusion and Recommendation.....	60
5.1. Conclusion.....	60
5.2. Recommendation.....	61
Bibliography.....	63
Appendices.....	

CHAPTER ONE

1.1 Background of the Study

The meaning of vulnerability is highly evasive. However, in common understanding, people who are easily susceptible to physical or emotional injury, or subject to unnecessary criticism, or in a less advantageous position in a society may be defined as a vulnerable people. Accordingly, vulnerable groups are those groups of people who may find it difficult to lead a comfortable life, and lack developmental opportunities due to their disadvantageous positions. Further due to adverse socio-economic, cultural and practices preset in each society, they find it difficult many times to exercise their human right fully¹.

The Declaration on the Rights of Disabled Persons defines a person with disabilities as “any person unable to secure by himself, wholly or partly the necessities of normal individual and/or social life, as a result deficiency, either congenital or not, in his or her physical or mental capabilities.”²

Vulnerable are groups referring to certain members of society that are likely to encounter discriminatory treatment or need special protection to avoid potential exploitation.³ There are particular groups who, for various reasons are weak and require special protection for the equal and effective enjoyment of their human rights.

Most known vulnerable groups are illustratively listed in the following manner: Women and girls, Children, Refugees, Internally displaced persons, Elderly persons, Stateless persons, national minorities, Indigenous peoples, Migrant workers, Disabled persons and HIV positive persons.⁴

For the purpose of this paper, we focus only the vulnerable groups which are supposed to be existed in DBU. Accordingly, Women and girls, Disabled persons and HIV positive persons are our main focus of study.

¹ Human Rights and Vulnerable groups, available at<<http://www.sagepub.com/upm-data/11973> chapter 5.pdf> accessed on December 1, 2016

²Article 1 of the Declaration of the Rights of Disabled Persons adopted in 1975

³Id, note 1

⁴Ibid

1.2. Statement of the problem

Despite the legal and institutional frame work adopted by government, vulnerable groups are still suffering from discrimination. This resulted in the continuing subordinate position of this group to the society.

Though the government has clearly demonstrated its commitment to redress this discrimination, there is a problem of translating policy commitment into effective plans and programs for implementation in protecting the human right of the groups and enabling them.

In spite of the protections enshrined under international, national as well as institutional level, vulnerable has been subjected to discrimination and denial of access to basic human rights, i.e. the right to education, property, health and etc.

1.3. Objectives of the Study

1.3.1. General Objective

The general objective of this study is to assess the protection of vulnerable groups' rights in DBU from the perspective of national as well as international legal frameworks.

1.3.2. Specific Objectives

The study would be focused on the following points:

- ❖ To assess the legal as well as institutional frameworks of both national and international instruments;
- ❖ To Explore the legal the protection of vulnerable groups rights in DBU;
- ❖ To analyze the violated of the of the vulnerable and find the possible solutions to that effect;
- ❖ To rationalize special protection for the rights of the vulnerable in DBU.

1.4. Research Questions

1. What are the principal challenges against the enjoyment of human rights by vulnerable groups in DBU?
2. What possible solutions are to be proposed to counter those challenges?

3. Whether or not the legal and institutional frameworks of DBU give the special protection for this group to exercise their human rights?
4. If there, what kinds of rights are recognized and access to this group?
5. Is there a gap in implementation?
6. What lessons of best practices could be drawn from other institutions experience?

1.5. Significances of the Study

The study provides the basic rights of the vulnerable which protect and can serve as a reference point and provides the existing laws which in turn enable the institutions to formulate a detailed laws with respect to vulnerable groups rights in the future. Thus, this research could have both an academic contribution and practical utilities to advance the protection of their rights, implementation strategies and monitoring systems. Generally, our study would be an input for the legislatures and shows the existing gaps between laws and the practices on the ground.

1.6. Research Methodology and Sources of Data

1.6.1. Methods of Data Gathering

Our research is an applied type of research and in conducting this research, we gather a data through; interview, questionnaire and focus group discussion. In doing so, a concerned body in the DBU, and supposed vulnerable groups were interviewed and questionnaires are distributed to the vulnerable groups (Women and girls, Disabled persons and HIV positive persons) and gathering information from a selected group through discussion respectively. Two types of questionnaires were prepared, one for supposed vulnerable groups and the other for the concerned body in the DBU.

1.6.2. Data Sources

In order to get sufficient and reliable information we employed the primary as well as secondary data sources.

Primary data: The major sources of data were gathered through interview, questionnaires, and focus group discussion.

Secondary data: Obtained from reviewing available literatures, books magazines, (published and unpublished) and internet.

1.6.2. Population and Sampling Techniques

Our target of study focus on “vulnerable groups” supposed to be existed in DBU. In order to get reliable information from the supposed group we use purposive sampling of non probability sampling which enables us to use our judgment to choose people that best meet our objectives.

1.6.3. Data Analysis

After gathering reliable and relevant information by applying the aforementioned methods and techniques we analyze a data through a quantitative as well as qualitative data analyzing systems. That means data obtained through the close ended questionnaires and interviews were analyzed quantitatively. In doing so, the raw was checked, tallied, numbered, arranged and organized by using different statistical tools such as percentages, and frequency count were employed. While those obtained through open ended questionnaire and interviews were analyzed qualitatively. This analysis helps to reach on findings, conclusions and possible recommendations.

1.7. Scope of the Study

There are 33 universities in Ethiopia. As such since it is difficult to involve all of them and to make the study manageable and to get reliable information the study has been limited to DBU. In terms of content the topic of study is all about rationalizing special protection for the rights of vulnerable in DBU.

1.8. Limitations of the Study

To the knowledge of the researchers, there is no comprehensive study that has been conducted with regard to the right of vulnerable groups in higher education institutions level which in turn make it difficult to get an adequate recorded data.

The other problem that we encountered during this study was the reluctance of some respondents of interview and others who fill out the questionnaire.

Other factor was difficulty of getting proper information about supposed vulnerable groups, due to absence of willingness to disclose their status.

The other prominent difficulty which impedes our study are includes time constraint i.e. time given for research quite short and absence of satisfactory internet connection.

1.8. Limitations of the Study

Our research will be going through shortages of time on account of the preparation for exit exam and time given for research is quite short and absence of satisfactory internet connection, lack of enough budget, resource and materials to be used as references are raised as challenges while conducting our study.

above-mentioned factors we confronted several challenges while conducting our study.

1.9. Organization of the Study

Generally, this study comprises of five chapters, the first chapter has general overview about the study; such as, background of the study, statement of the problems, research questions, objective of the study, significances of the study, methodology of the study, scope of the study, limitation of the study and organization of the study; the second chapter is all about reviewing literature that are pertinent to the study and avails us to boost our study; the next chapter purports data presentation, analysis, and the next chapter deal with the rights of vulnerable groups under international, regional and national instruments and chapter four is all about the case of DBU with respect to granting protection to vulnerable groups and under the last chapter we will provide summary, conclusion and recommendation.

CHAPTER TWO

Literature Review

2.1. Definition of Vulnerability

A central paradox of vulnerability is that it is both universal and particular. Both of these features arise in the first place from our embodiment:⁵as embodied beings we are all vulnerable, but we experience this vulnerability uniquely through our individual bodies. The centrality of the corporeal dimension of vulnerability is reflected in the term's etymology: the term stems from the Latin *vulnus*, which means, "wound"⁶. Turning first to the meaning of vulnerability in the universal sense, it comes as no surprise that harm and suffering feature centrally in most accounts of vulnerability⁷. Mary Neal neatly summarizes the literature:

Vulnerability speaks to our universal capacity for suffering, in two ways. First, I am vulnerable because I depend upon the co-operation of others (including, importantly, the State) . . . Second, I am vulnerable because I am penetrable; I am permanently open and exposed to hurts and harms of various kinds⁸.

Thus, as vulnerable subjects we are constantly susceptible to harm. Harm, of course, comes in many varieties that intersect and reinforce one another. Injuries can be bodily, moral, psychological, economic and institutional, just to mention a few.⁹

⁵ Jan Helge Solbakk, *Vulnerability: A Futile or Useful principle in Health care Ethics?*, in THE SAGE HANDBOOK OF HEALTH CARE ETHICS 228, 229 (Ruth Chadwick, Henk ten Have and Eric M. Meslin eds., 2011).

⁶ BRYAN S. TURNER, VULNERABILITY AND HUMAN RIGHTS 28 (2006).

⁷ Id, page 27

⁸ Mary Neal, "Not Gods but Animals": Human Dignity and Vulnerable Subject hood", 33 LIVERPOOL L. REV. 177, 186-187 (2012).

⁹ Ibid

These different forms of harm already hint at the ways in which vulnerable particular (as well as universal).

Our “different forms of embodiment “and our different positions within “webs of economic and institutional relationships at each of us experiences vulnerability uniquely.¹⁰ Martha Fineman points out that the experience of vulnerability “is greatly influenced by the quality and quantity of resources we possess or can command. Recently, however, theorists have moved towards an understanding of vulnerability that expands beyond (universal and particular) suffering, to encompass positive aspects.¹¹ Human vulnerability is generative of suffering, so the argument runs, but also of empathy, pleasure, innovation, social institutions, intimacy and social-connectedness. Martha Fineman argues that this generative capacity of vulnerability “presents opportunities for innovation and growth, creativity, and fulfillment. It makes us reach out to others, form relationships, and build institutions.” Indeed, Fineman insists that we need to re-conceptualize vulnerability in this positive manner in order to get rid of the stigmatizing effects otherwise attached to the term.

2.2. Vulnerability as a Heuristic Device

Fineman has described vulnerability as a heuristic device that allows us to “examine hidden assumptions and biases folded into legal . . . practices”.¹² The fact that vulnerability can be used as a heuristic device points to the next paradox inherent in the concept: it can be deployed both to diagnose the “is” and the “ought”. In other words, vulnerability is analytically both a descriptive and prescriptive tool. The problem is that the bridge between the descriptive and the prescriptive powers of vulnerability is not easy to build. Especially ethicists struggle with the question how vulnerability can have prescriptive force, since embodied vulnerability is known to trigger both care and abuse.¹³ Scholars from different disciplines agree, however, that using vulnerability as a critical tool involves exploring how societal or institutional arrangements originate, sustain, and reinforce vulnerabilities.¹⁴ As was mentioned above, part of the reason why people are vulnerable is because they are

¹⁰ Ibid

¹¹ <http://www.law.emory.edu/faculty/faculty-profiles/Martha-Albertan-Fineman.html>, accessed on 16 November 2009

¹² Martha Albertson Fineman, *The vulnerable Subject and the Responsive State*, 60 EMORY L.J.251.(2010)

¹³ M. Fineman, *The Vulnerable Subject*, *Anchoring Equality in the Human Condition*, Yale Journal of Law, vol,20, No. 1, 2008

¹⁴ Id, page 191

inevitably dependent on the cooperation of others. Vulnerability is therefore inherently a “relational”¹⁵ concept, which supplements “attention to the individual subject by placing him/her in social context”.¹⁶In the next section, we will adopt a similar contextual approach to vulnerability in our case law analysis.

Within the legal literature there is a tension between group-based and universality-based deployments of vulnerability. This seems due to the paradoxical nature of the concept. On the one hand, vulnerability is often used to analyze specific populations;¹⁷ on the other hand, Martha Fineman has developed a vulnerability thesis that is expressly universal in its scope and “post identity.”¹⁸Fineman objects to applying the term vulnerability only to specific groups. She maintains that, as long as vulnerability is only associated with certain (marginalized) identities, the liberal myths that, “normally,” people are self-sufficient, independent, and autonomous is sustained.¹⁹ This myth which is in her view pervasive in American society has led to an impoverished notion of what the function of the state is and has moreover legitimized rampant inequality. Instead, Fineman proposes to understand vulnerability as a “universal, inevitable, enduring aspect of the human condition” and posits that the proper role of the state is to be responsive to this.²⁰She presents her vulnerability thesis as an alternative to traditional group-based US equal protection analysis.²¹Fineman argues that her analysis is capable of delivering substantive equality (where the traditional analysis has failed) because her thesis turns the inquiry to the “institutional practices that produce the identities and inequalities in the first place”.

The vulnerable-group reasoning of the Strasbourg Court seems to fit ill with Fineman’s thesis. While Fineman supports vulnerability for its potential of capturing the universal, the Court does it for its ability to capture the particular. In our view, however, there is no inherent impediment to reconciling these two approaches on a *conceptual* level—on the contrary; that would fit the concept’s paradoxical nature well. When we asked a Strasbourg judge about the Court’s reasoning, he replied: “All applicants are vulnerable, but some are more vulnerable

¹⁵Id, 129

¹⁶Id, note 12

¹⁷ Audrey R. Chpman and Benjamin Caronetti, *Human Rightsprotection for vulnerable and Disadvantaged Groups: The contribution of UN Committee on Economic, Social and Cultural Rights*

¹⁸ibid

¹⁹Martha Albertson Fineman, *The Autonomy Myth: A Theory of Dependency* (2004).

²⁰Id, note 12

²¹ United States v Caroline Prods. Co.,340U.S. 144). , 152, n.4(1938.

than others”.The judge thus neatly merged the universal approach with the group-based approach. This reply also points to the fact that, as we will show in the next section, the Court’s reasoning is a way of recognizing that people are differently vulnerable; that vulnerability is partially constructed depending on economic, political and social processes of inclusion and exclusion. Whether the Court in practice manages to handle vulnerability as a critical tool with the care that is required without falling in the pitfalls that Fineman and others warn against is also the subject of the next section.

2.3. Human Rights Law and Vulnerability

Before moving on to the case law analysis, it bears standing still for a moment and considers what kind of role vulnerability has so far played in the human rights context. At first sight, human rights lawyers suffer less from the is/ought dilemma precisely because they can refer to the human rights corpus, which in essence lays down the rule that abuse of human embodied vulnerability is prohibited.²² However, as we shall see, critically minded human rights scholars have shown that the story is not that straightforward. The relationship between vulnerability and human rights is a contested terrain.²³

In view of the topic of this paper the crucial question is: *are human rights so construed as to protect the most vulnerable people?* On a conceptual level, Anna Greer shows, the answer to this question is complex and bifurcated.²⁴ Greer argues that the Universal Declaration of Human Rights (UDHR) paradigm contains two contradictory impulses.²⁵ On the one hand, the whole human rights system is founded on a concern for embodied vulnerability.²⁶ Greer presents a genealogy of human rights in which she shows that this is the case both during the idea’s early articulations in the eighteenth century and when the UDHR was created as a reaction to the horrors of World War II. On the other hand, the liberal legal subject has been imported into the human rights structure: archetypically, this is a rationalistic and quasi-disembodied subject. In many ways, this subject is conceived of as invulnerable.²⁷

²²Audrey and Benjamin, cited above at note 16

²³Ibid

²⁴Bryan T., cited above at note 5

²⁵Anna Grear, Challenging corporate “Humanity”: Legal Disembodiment, Embodiment and Human Rights, 2007.

²⁶Ibid

²⁷DERBA BERGOFFEN, CONTESTING THE POLITICIS OF GENOCIDAL RAPE: AFFIRMING THE DIGNITY OF THE VULNERABLE BODY, page 101-119, (2012).

What flows from the dominance of the liberal quasi-disembodied subject in human rights law is a set of deeply troubling exclusions. Drawing on a well-known theme from feminist legal theory,²⁸ Grear argues that the many groups that do not fit the liberal archetype women, dispossessed, people of color, and especially asylum seekers fall outside the scope of the purportedly universal protection of human rights. Termed “protest scholars”; those who conceive of human rights as articulating “rightful claims made by or on behalf of the poor, the underprivileged and the oppressed.”²⁹ So to go back to the question whether human rights law is so construed as to protect the most vulnerable people: the answer is yes and no. Drawing on the work of Greer, the subject of human rights law is arguably not an embodied vulnerable subject let alone a highly vulnerable subject. We would wish that the Court is only doing its regular job by reasoning from vulnerability, but the Court’s reliance on the concept is more complex than that. Our diagnosis is this: Of course, many within the human rights movement are aware that the human rights universal fails to include marginalized subjects. In response to this problem, specific treaties have proliferated, such as the Convention on the Rights of Persons with Disabilities;³⁰ The Convention on the Elimination of all Forms of Discrimination against Women; the Convention on the Elimination of Racial Discrimination; and the Convention on the Rights of the Child.³¹ Greer interprets the creation of these specific human rights instruments as repeated critiques of “the closures of the abstract universal” and “the outcome of quasi-disembodiment”.³² Aside from the specific treaties, general treaty bodies in their General Comments and Concluding Observations also regularly emphasize the imperative to pay special attention to the needs of particularly vulnerable people. The same holds true for human rights commissioners.³³ In academic scholarship, lastly, these critiques are mirrored in the writings of what Marie-Benedict Dembourhasin response to the exclusions of human rights law, the Strasbourg Court has been forced to attend to the constructed disadvantage of certain groups, and in so doing, has deployed the concept of group vulnerability. ³⁴As we will now proceed to show, the Court’s deployment of the concept has both strengths and weaknesses:

²⁸Catherine A. Mackinnon, *Crimes of War, Crimes of Peace*, Anne Orford ed., 2006.

²⁹*Ibid*

³⁰ Adopted 18 Dec. 1979, GA. Res.34/180, Entered into force 3. Sept.1981.

³¹ Adopted 20 Nov. 1989, GA. Res.44/26, entered into force 2 Sept. 1990.

³² Grear, cited above at note 25

³³ THOMAS HAMMERBERG, *HUMAN RIGHTS IN EUROPE: NO GROUNDS FOR COMPLACENCY* (2011).

³⁴*Ibid*

Having saying about the general concept of the vulnerable groups now we will proceed to discussing them in particular.

Chapter Three

International, Regional, and National Legal Frameworks on Protection of the Rights of Vulnerable Groups

3.1. General Overview about Women

Women almost constitute half of the world population. However, their enjoyment of rights equally with that of men is far from satisfactory. In every society from ancient to modern times, women are considered as the property of men to serve their interest. In order to halt such practices, the UN and international community have evolved a number of methods to augment the rights of women on par with men without any discrimination³⁵.

3.2. What necessitates the granting of special protection for women?

Although, women are believed to constitute half of the world's population, they are, however, invariably deprived of access to and equal share of resources and opportunities. The causes for such inequalities are deeply rooted in religious, cultures, legal systems, political institutions and social attitudes in different societies. Despite the fact that most legal barriers have been removed and nondiscriminatory laws have become applicable worldwide since the mid 20th century, women still remain far off from reaching equality to men. In fact, they continue to be among the most disadvantaged in all realms life due to the legacies of the past.³⁶

³⁵Dr.T.S.N.Sastry, Human Rights 2012.Group, University of Pune, August of Vulnerable and Disadvantaged Groups

³⁶ Ibid

Similarly, women in Ethiopia faced a variety of legal, economic and social constraints. They are victims of harmful traditional practices and domestic violence; they were deprived of access to education, training, employment and political participation reinforced by stereotypical attitudes.

Being disadvantaged in education and subjected to cultural taboos and restrictions, women's participation in the public sphere remains minimal and consequently could not become equal beneficiaries from the growing economy³⁷.

3.3. The rights of education of women under international and national instruments

3.3.1 Under International instruments

Apart from the general provisions to guarantee the human rights of women, the UN from 1952, adopted a number of conventions to promote the status of women in all respects.

The Universal Declaration of Human Right (herein after “UDHR”)

The declaration states, under Article 20, *"Everyone has the right to education."* It provides that; Higher education shall be equally accessible to all on the basis of merit, and technical and professional education shall be made generally available.

The UDHR also stipulates that education should be directed towards the full development of the human personality and strengthening respect for human rights.

The International Covenant on Economic, Social, and Cultural Rights (herein after ICESCR)

Articles 13 and 14 of the ICESCR set out detailed formulations of the right to education. Article 13 contains a general statement that everyone has the right to education and that education should contribute to the full development of the human personality. It also specifically stipulates that: Higher education shall be made equally accessible to all, on the basis of capacity, by every appropriate means, in particular by the progressive introduction of free education.

³⁷ Ibid

Convention on the Elimination of Discrimination Against Women (herein after CEDAW)

Under its article 10 it provides that; states parties shall take appropriate measures to eliminate discrimination against women in order to ensure to them equal right with men in the field of education and in particular to ensure, on a basis equality of men and women:

- ✿ The same condition for career and vocational guidance, for access to studies and for the achievement of diplomas in educational establishments of all categories in rural as well as urban areas; this equality shall be ensured in pre-school, general, technical, professional and higher technical education, as well as in all types of vocational training;
- ✿ Access to same curricula, the same examinations, teaching staff with qualifications of the same standard and school premises and equipments of the same quality;
- ✿ The elimination of any stereotyped concept of the roles of men and women at all levels and in all forms of education by encouraging co-education and other types of education which will help to achieve this aim and, in particular by the revision of textbooks and school programmes and the adaptation of teaching methods;
- ✿ The same opportunities to benefit from scholarships and other study grants;
- ✿ The same opportunities for access to programs of continuing education, including adult and functional literacy programs, particularly those aimed at reducing, at the earliest possible time, any gap in education existing between men and women;
- ✿ The reduction of female student drop-out rates and the organization of programs for girls and women who left school permanently;
- ✿ The same opportunities to participate in sports and physical education;
- ✿ Access to specific educational information to help to ensure, the health and wellbeing of families, including information and advice on family planning.³⁸

The World Declaration on Education for All , EFA (1990): Emphasizes the inherent right of a child to a full cycle of primary education, equal access to education for all, including those with special needs, in the same setting; commitment to a child centered pedagogy where individual differences are accepted as a challenge and not as a problem; improvement of the quality of primary education as well as teachers education; recognition of the wide

³⁸ UN Convention on the Elimination of Discrimination Against Women, 1982, Article 10

diversity of needs and patterns of development among primary school children's individual needs

The World Education Forum (2000): This is about making the right to education a reality as it is enshrined in the 'Universal Declaration of Human Rights, 1948'. It is the extension of 'Education for All' movement.

3.3.2 The Rights of Education of Women under Regional instruments

The African Charter on Human and Peoples' Rights (herein after ACHPR):

Article 2 of the ACHPR provides that every person "every shall be entitled to the enjoyment of rights and freedoms recognized and guaranteed in the present charter without distinction of any kind such as race, ethnic group, color, sex, language, political or any other opinion, national and social origin, fortune birth or other status."

3.3.3 The Rights of Education of Women under National instruments

Though there is not a comprehensive and clear provision that declares education as a right in our legal system too many efforts are made in realizing it as international instruments in which Ethiopia is a member obliged to that effect. Towards this the government has legislations and policies, amongst;

The Federal Democratic Republic of Ethiopia Constitution (Herein after FDRE Constitution)

Article 35(1) of the FDRE constitution provides that women have equal rights men in the enjoyment of the rights protection under the constitution. Article 25 of the same also provides that all persons "are equal before the law and are entitled to without any discrimination to the equal protection of the law.

The rights of citizens to equal access to publicly funded services and the support that shall be given to accommodate the needs of women is clearly stipulated in the Constitution Article 40(5).

From this we can deduce that as the government takes the very mandate to make accessible educational infrastructures for its citizens in ascertaining their rights to education, disabled persons have a right to education and the government is duty bound to provide it in a manner suitable to women.

The 1994 Education and Training Policy

This policy aims at ensuring equity and fair distribution of educational opportunities across regions, religions, gender, social class and any other considerations, may be one form of implementation of standards of the right to education. In determining the contents of Ethiopian educational policies on the right to education and the in efforts to further elaborate laws and policies

On the right to education, the following elements identified by CESCR are useful:

- Availability: there have to exist functioning educational institutions and programs;
- Accessibility: educational institutions and programs have to be accessible to everyone without discrimination, assuring also their physical accessibility and affordability to all ;
- Acceptability: the form and substance of education, including curricula and teaching methods, have to be acceptable;
- Adaptability: education has to be flexible so that it can adapt to the needs of changing societies and communities and respond to the needs of students within their diverse social and cultural settings.³⁹

Ethiopian higher education Institutions’ Proclamation (No.650/2009): This one also states that higher education institutes should accept women and provides material and professional support to meet their special educational needs (art. 40).⁴⁰

3.4. General Overview about the Persons with Disabilities and their Rights

Disability is part of the human condition. Almost everyone will be temporarily or permanently impaired at some point in life, and those who survive to old age will experience increasing difficulties in functioning. Most extended families have a disabled member, and many non-disabled people take responsibility for supporting and caring for their relatives and friends with disabilities.⁴¹

Some authoritative sources like, the WHO and ILO, defines disability as;

³⁹Committee on Economic, Social and Cultural Rights (CESCR), General Comment No. 13: The right to education, art.13

⁴⁰ Ethiopian Higher Education Proclamation no.650/2009, Article 40

⁴¹Dr.T.S.N.Sastry, Cited above at note 34

“...any restriction or lack (resulting from impairment) of ability to perform an activity in the manner or within the range considered as normal for human beings”⁴²

Further ILO defines disability as *“...a state in which functional limitations and/or impairments are causative factors of existing difficulties in performing one or more activities which, (in accordance with the subjects age, sex and normative social role) generally accepted as essential basic components of daily living such as self-care, social relationship and economic activity”*(ILO 2006)

The recent and most significant UN Convention on the Rights of People with Disabilities also defined Persons with Disabilities as “those who have long term physical mental and intellectual or sensory impairments which in interaction with various barriers may hinder the full and effective participation in society in an equal basis with others”.⁴³

From these definitions we can understand that disability is all about the physical and mental limitation of the person in contrast with what is deemed as normal physical and mental status. Accordingly, disability may be permanent or temporary per the duration it survives with the disabled. Or it may visible, such as, physical impairments or invisible such as, mental retardation. For the purpose of this paper only visible disabilities are to be dealt.

According to the International Rehabilitation Review⁴⁴, nearly 10% of the world’s population has disabilities, of which 80% live in developing countries. Most of those in developing countries do not have access to rehabilitation services due to a lack of resources and other various factors.⁴⁵

Not surprisingly the most affected groups among the disabled are those that are in developing countries in general and women and children in particular⁴⁶

However, till the nearest years though they {disables} have massive coverage (10 %) of the world’s population their participation in their surrounding and the protection afford to them is low. Discrimination against persons with disabilities has a long history and takes various forms⁴⁷. They range from invidious discrimination, such as the denial of educational opportunities, to more “subtle” forms of discrimination such as segregation and isolation

⁴²WHO in 1976 by Helander, 1993 Prejudice and Dignity, Introduction to Community Based Rehabilitation. New York: UNDP

⁴³UN Convention on the Rights of Persons with Disabilities, Art. 1

⁴⁴United Nations Children’s Fund -UNICEF (1988), Rehabilitation International Technical Support Program to Prevent Childhood Disabilities and to Help Disabled Children Vol. 7, UNICEF.

⁴⁵Tirussaw, T. (1998), Persons with Disabilities of High Achievement Profile in Ethiopia

⁴⁶www.Inclusion-international.org

⁴⁷Committee on Economic, Social and Cultural Rights, in its general comment No. 5/1994

achieved through the imposition of physical and social barriers. Through neglect, ignorance, prejudice and false assumptions, as well as through exclusion, distinction or separation, persons with disabilities have very often been prevented from exercising their economic, social or cultural rights on an equal basis with persons without disabilities. The effects of disability- based discrimination have been particularly severe in the fields of education, employment, housing, transport, cultural life, and access to public places and services.

What necessitates the Protection for Persons with Disabilities?

For one thing, being disabled is not being cursed rather it is a part of human condition, thus, everyone with disability should have conferred a protection in every aspect of life she/he involved and in any situation s/he were. Further, as we tried to discuss before nearly 10% of the world's population has disabilities, hence by leaving aside this mass of peoples we did not achieve what we want to achieve. Given the proportion of disabled people and the situation in which they live, it is difficult to imagine meeting the MDG goals without improving the lives of Persons with Disabilities. For instance the world is promised to reduce poverty and to eradicate starvation, imagine how this be done if we let disabled (10 % of the world population). Henceforward, we have to enable and take care of them in the way they do and from any difficulty they may face.

Further, persons with disabilities, as they are human beings, are entitled to the full spectrum of human rights and fundamental freedoms without discrimination. The *Universal Declaration of Human Rights* has proclaimed and agreed that everyone is entitled to all the rights and freedoms set forth therein, without distinction of any kind.⁴⁸

They shall not be deprived of enjoying their human rights because of the mere fact that they are disabled. From time onwards many more efforts were made in ensuring the rights of persons with disabilities and able to come up with international legislations with a binding nature, such as the 2006 UN Convention on the Rights of Persons with Disabilities. This convention *recognizing* the importance of accessibility to the physical, social, economic and cultural environment, to health and education and to information and communication, in enabling persons with disabilities to fully enjoy all human rights and fundamental freedoms. Likewise, it also provides that “States Parties undertake to ensure and promote the full realization of all human rights and fundamental freedoms for all persons with disabilities

⁴⁸Article 2 of The Universal Declaration of Human Rights, 1948

without discrimination of any kind on the basis of disability by adopting all appropriate legislative, administrative and other measures for the implementation of the rights recognized in the convention.”⁴⁹ Therefore upon signing these types of conventions, as it is an international consensus, states are obliged to ascertain the rights of disabled persons.

Moreover, as a well-known astrophysicist Professor Stephen W. Hawking once said *“Disability need not be an obstacle to success. I have had motor neuron disease for practically all my adult life. Yet it has not prevented me from having a prominent career in astrophysics and a happy family life.”* We believe that disability is not by itself an obstacle to success and for senseless way of life.

A. The type of protection be given

The protection given for these types of persons should be a protection that enables them to enjoy all the rights conferred to human beings as they were able except the difficulty they face. Thus, the protection necessarily is a special type of protection to enable them to do things better and exercise their rights fully without sensing depression and discrimination.

3.5. Protection of the Rights of Persons with Disabilities in International and National Legal Instruments

Discrimination against Persons with Disabilities has a long history and persons with disabilities are regularly excluded from participation in society and denied their human rights. Discrimination against the disabled can take many forms, ranging from limited educational opportunities to more subtle forms, such as segregation and isolation because of physical and social barriers. The effects of discrimination are most clearly felt in the sphere of economic, social and cultural rights, in the fields of, for instance, housing, employment, transport, cultural life and access to public services. The obstacles the disabled face in enjoying their human rights are often the result of exclusion, restriction, or preference, and, for instance, when the disabled do not have access to reasonable accommodation on the basis of their limitations, their enjoyment or exercise of human rights may be severely restricted. In order for disabled persons to freely enjoy their fundamental human rights, numerous cultural and social barriers have to be overcome; changes in values and increased understanding at all levels of society has to be promoted, and those social and cultural norms that perpetuate myths about disability have to be put to rest.⁵⁰

⁴⁹ UN Convention on the Rights of Persons with Disabilities, Art.4

⁵⁰Dr.T.S.N.Sastry, Cited above at note 35

3.5.1. Under International Human Rights Standards

In general, international human rights instruments protect the rights of persons with disabilities through the principles of equality and non-discrimination. The UDHR refers expressly to disabled persons, stipulating in Article 25 that ‘everyone has the right to security in the event of [...] disability’, but its derivatives, the ICCPR and ICESCR, do not contain any explicit reference to persons with disabilities. Many provisions of the Covenants are, however, of direct relevance for ensuring equal opportunities and the full participation of persons with disabilities in society; for example, Article 6 (respecting the right to life) and Article 7 (respecting the right to freedom from torture and other cruel, inhuman or degrading treatment and punishment) under the ICCPR and Article 2 (the general non-discrimination norm) under the ICESCR. Article 23 of the Convention on the Rights of the Child specifically discusses the rights of handicapped and disabled children.⁵¹

The Committee on Economic, Social and Cultural Rights has adopted a General Comment on persons with disabilities. General Comment No. 5 - Persons with disabilities is particularly important as it establishes that disability falls under the heading, ‘other status’ in Article 2 ICESCR and is therefore regarded by the Committee as a prohibited ground for discrimination. Similarly, the Committee on the Elimination of All Forms of Discrimination Against Women has adopted General Recommendation No. 18 - Disabled women.⁵²

Several international and regional human rights instruments contain specific provisions concerning persons with disabilities.

Under the auspices of the African Union(herein after AU), the African Charter of Human and Peoples’ Rights stipulates in Article 18(4) that the disabled shall be entitled to special measures of protection and the African Charter on the Rights and Welfare of the Child discusses the rights of handicapped children in Article 13.⁵³

The European Social Charter (revised) stipulates that disabled persons have the right to independence, social integration and participation in the life of the community’ (Part I No. 15) and sets out steps that states shall undertake to this end, such as promoting access to employment and education (Article 15).⁵⁴

⁵¹DemelashShiferaw, YonasAlemu, Human Rights Law Teaching Material, 2009

⁵²Id, page 80

⁵³ibid

⁵⁴ibid

Article 6 of the Protocol of San Salvador stipulates: ‘States Parties undertake to adopt measures to make the right to work fully effective [...] in particular, those directed to the disabled’ and Article 9 sets out the right to social security in case of disability. Moreover, provisions in human rights instruments protecting members of vulnerable groups are applicable to disabled persons.

Two international conventions dealing directly with the rights of disabled persons have been drafted. One is the Inter-American Convention on the Elimination of All Forms of Discrimination Against Persons with Disabilities 1999 the only regional convention of its kind in the world. States parties undertake, *inter alia*, to adopt necessary measures to eliminate discrimination against persons with disabilities; to ensure access to facilities and services; to provide services to ensure optimal level of independence and quality of life for persons with disabilities; and to implement educational campaigns to increase public awareness so that discrimination can be eliminated, promoting respect for and co-existence with persons with disabilities (Article 3). Furthermore, states parties undertake to collaborate and co-operate to eliminate discrimination (Article 4) and to promote participation of organisations of persons with disabilities in the measures and policies adopted to implement the Convention (Article 5). The other Convention is ILO 159 concerning Vocational Rehabilitation and Employment (Disabled Persons) (1983). It sets out, *inter alia*, principles of vocational rehabilitation and employment policies aimed at equal opportunity and measures for action at the national level to be taken for the development of rehabilitation and employment services for disabled persons.

Specific non-binding instruments have also been adopted at the international level addressing the rights of disabled persons. These instruments include the Declaration of the Rights of Mentally Retarded Persons (UNGA Resolution 26/2856 (XXVI), 1971); the Declaration on the Rights of Disabled Persons (UNGA Resolution 30/3447 (XXX), 1975); the World Programme of Action concerning Disabled Persons (UNGA Resolution 37/52, 1982); the Tallinn Guidelines for Action on Human Resources Development in the Field of Disability (UNGA Resolution 44/70, 1990); the Principles for the Protection of Persons with Mental Illness and the Improvement of Mental Health Care (UNGA Resolution 46/119, 1991); ILO Recommendations concerning Vocational Rehabilitation of the Disabled (1955) and concerning Vocational Rehabilitation and Employment (Disabled Persons) (1983); the Sundberg Declaration on Actions and Strategies for Education, Prevention and Integration (1981); the Salamanca Statement on Principles, Policy and Practice in Special

Needs Education (1994); and the Standard Rules on the Equalisation of Opportunities for Persons with Disabilities (UNGA Resolution 48/96, 1993).⁵⁵

A World NGO Summit on Disability was held in Beijing in March 2000, resulting in the Beijing Declaration on the Rights of People with Disabilities in the New Century. Through this Declaration, the NGOs in the field of disability lent their moral authority to the idea of a disability-specific human rights treaty.⁵⁶

In 2001, in the wake of the Beijing Summit, the General Assembly established an Ad Hoc Committee to consider proposals for a convention on disability. The aim is a comprehensive and integral international convention to promote and protect the rights and dignity of persons with disabilities, based on the work done in the fields of social development, human rights and non-discrimination (UNGA Resolution 56/168, 2001). The Committee is at the first stages of work and held its second session in June 2003, assisted by the participation of several prominent global NGOs in the field of disability such as: Disabled Persons International (DPI); Inclusion International; Rehabilitation International (RI); World Blind Union (WBU); World Federation of the Deaf (WFD); World Network of Users and Survivors of Psychiatry (WNUSP); and World Federation of the Deaf-Blind (WFDB).⁵⁷

In December 2001, the Mexican government put forward Resolution 56/168 in the United Nations General Assembly. The resolution called for consideration of a Convention on the human rights of persons with disabilities and further sought the immediate formation of an Ad-Hoc Committee. This Committee would ‘consider proposals for a comprehensive and integral international convention to protect and promote the rights and dignity of persons with disabilities’. Resolution 56/168 passed without any vote. The Committee held its first session at UN Headquarters in New York from 29 July to 9 August 2002. In its initial report to the General Assembly, the Committee recommended the adoption of a resolution that would invite ‘regional commissions and inter-governmental organisations, as well as non governmental organisations to make available to the Ad Hoc Committee suggestions and possible elements, to be considered in proposals for a Convention’. The General Assembly subsequently passed Resolution 56/510, respecting the accreditation and participation of NGOs in the Committee, and Decision 56/474, which ‘requests the Secretary-General to

⁵⁵Id, page 81

⁵⁶Id, page 82

⁵⁷ibid

make, as needed and within existing resources, reasonable efforts to facilitate the participation by persons with disabilities in the meetings and deliberations of the Ad Hoc Committee.⁵⁸

Supervision: In 1994, the position of Special Rapporteur on Disability of the United Nations Commission for Social Development was established. The task of the Special Rapporteur is to monitor implementation of the Standard Rules on the Equalisation of Opportunities for Persons with Disabilities and to advance the status of people with disabilities throughout the world. Furthermore, under the auspices of the UN, the Division for Social Policy and Development of the United Nations Secretariat is the focal point on matters relating to disability. The Division deals, *inter alia*, with the promotion, monitoring and evaluation of the implementation of the World Programme of Action and the Standard Rules; it prepares publications, promotes national and international programmes and works closely with and supports governments and NGOs in the field of disability. The Division also publishes the UN Enable, the United Nations Persons with Disabilities website.⁵⁹

One of the major development goals of the United Nations is promoting the quality of life of the disadvantaged, including people with disabilities. The year 1982 was the UN International Year of Disabled Persons and towards its end the World Programme of Action concerning Disabled Persons (WPA) was adopted by the General Assembly. The WPA is a global strategy to enhance disability prevention, rehabilitation and equalisation of opportunities with the aim of full participation of persons with disabilities in social life and national development. The WPA emphasises the need to approach disability from a human rights perspective and that persons with disabilities should not be treated in isolation, but within the context of normal community services. The WPA provided analysis of principles, concepts and definitions relating to disabilities and an overview of the world situation regarding persons with disabilities, setting out recommendations for action at the national, regional and international levels.⁶⁰

In order to provide a time frame for the implementation of the World Programme of Action, the General Assembly proclaimed 1983-1992 the United Nations Decade of Disabled Persons. One of the major results of the Decade was the adoption of the Standard Rules on the Equalisation of Opportunities for Persons with Disabilities. Although not legally

⁵⁸ibid

⁵⁹Id, page 83

⁶⁰ibid

binding, the rules summarise the message of the WPA, cover all aspects of the life of disabled persons and set out the moral and political commitment of states to take action to attain equal opportunities for the disabled; the rules serve as policy instrument and as a foundation for economic and technical co-operation.⁶¹

The International Day of Disabled Persons is 3 December each year. The aim is to promote an understanding of disability issues and mobilise support for the dignity, rights and well-being of persons with disabilities. Similarly, the United Nations Economic and Social Commission for Western Asia (ESCWA) has launched the Arab Decade for People with Disabilities from 2003-2012.⁶²

3.5.2. Under National Legal Frameworks

The government of Ethiopia has developed a number of legislation and ratified many international treaties and conventions pertaining to disability with the aim of benefitting person with disabilities to get equal access in every service. Among these legislative and policy tool Constitution (1995) is one of the main legislation that sets out state responsibility pertaining to person with disabilities, accordingly, in its Article 41(5) states that *“the State shall, with its available means, allocate resources to provide rehabilitation and assistance to the physically and mentally disabled”*. Further, The National plan of Action of Person with Disabilities 2012-2021 set out to address the need of persons with disabilities in Ethiopia by providing a comprehensive rehabilitation service, equal opportunity for education, skill training and work, and full participation in life of their families, community and nation. In addition to this The Building Proclamation number 624/2009, under its article 36(1) provides that, *“Any public building shall a means of access suitable for the use by physically impaired persons including those who are obliged to use wheelchairs and those who are able to walk but unable to negotiate steps.*

3.6. Rights to Education of Persons with Disabilities under International as well as National Legal Instruments

3.6.1. International Instruments

In many international human right instruments the right to education is considered as one of the fundamental rights that we human beings have and impose an obligation on their signatory states to be abided by their consent and obliged them to add their endeavor to realize such right. Among others those disable persons have a right to education as they are a human being.

⁶¹ibid

⁶²Ibid

The basic interrelated ideas of education included or outlined in international policy documents, declarations, conventions, framework of actions, forums of, either adopted to all or for giving special protection for some group of persons, all confirm these rights to education, some of them are;

The Universal Declaration of Human Rights (1948)

States that, everyone has the right of equal access to public services in general and education in particular, and establishes the principle of free basic compulsory education for citizens to support the full development of human personality, and to strengthen respect for human rights and fundamental freedoms.

International Convention on Economic, Social and Cultural Rights (ICESCR)

Article 13 of ICESCR recognizes the right of everyone to education and outlines the objectives of the education:

- The full development of human personality and the sense of its dignity,
- Strengthening the respect for human rights and fundamental freedoms,
- Enabling all persons to participate effectively in a free society,
- Promotion of understanding, tolerance and friendship among all nations and all racial, ethnic or religious groups.

The Declaration on the Rights of Disabled Persons (1975)

Calls for international and national actions to ensure the rights of the disabled to all services, enable them to develop their capabilities and skills to the maximum possible, and hasten the process of their social integration or reintegration.

The World Declaration on Education for All, EFA (1990)

Emphasizes the inherent right of a child to a full cycle of primary education, equal access to education for all, including those with special needs, in the same setting; commitment to a child centered pedagogy where individual differences are accepted as a challenge and not as a

problem; improvement of the quality of primary education as well as teachers education; recognition of the wide diversity of needs and patterns of development among primary school children's individual needs.

The Standard Rules on the Equalization of Opportunities for Persons with Disabilities (1993): Recognizes the principle of equal primary, secondary and tertiary educational opportunities for children, young people and adults with special needs in an integrated setting; the education of persons with special needs as an integral part of the education system. It establishes appropriate, adequate and accessible support services to accommodate educational provisions for persons with special needs in an inclusive setting.

The World Education Forum (2000): This is about making the right to education a reality as it is enshrined in the 'Universal Declaration of Human Rights, 1948'. It is the extension of 'Education for All' movement.

The UN Convention on the Rights of Persons with Disabilities (2007): This Convention endeavors to elaborate in detail the rights of persons with disabilities and set out a code of implementation. In its article 24 provides *"States Parties recognize the right of persons with disabilities to education. With a view to realizing this right without discrimination and on the basis of equal opportunity, States Parties shall ensure an inclusive education system at all levels and lifelong learning directed to: The development by persons with disabilities of their personality, talents and creativity, as well as their mental and physical abilities, to their fullest potential"*

Generally, as clearly forwarded by too many international human right instruments, the right to education is among the fundamental human rights that we all have to enjoy. More importantly, persons with disabilities have been enabled to exercise this right as it has a multifaceted advantage for them as a means of survival and construction of confidence in every aspect they engage in.

3.6.2. Under National Instruments

Though there is not a comprehensive and clear provision that declares education as a right in our legal system too many efforts are made in realizing it as international instruments in which Ethiopia is a member obliged to that effect. Towards this the government has legislations and policies, amongst;

The FDRE Constitution

The rights of citizens to equal access to publicly funded services and the support that shall be given to accommodate the needs of persons with disabilities is clearly stipulated in the Constitution (Art. 41 (5)). From this we can deduce that as the government takes the very mandate to make accessible educational infrastructures for its citizens in ascertaining their rights to education, disable persons have a right to education and the government is duty bound to provide it in a manner suitable to those persons with disabilities.

The 1994 Education and Training Policy

This policy aims at ensuring equity and fair distribution of educational opportunities across regions, religions, gender, social class and any other considerations, may be one form of implementation of standards of the right to education. In determining the contents of Ethiopian educational policies on the right to education and the in efforts to further elaborate laws and policies

On the right to education, the following elements identified by CESCR are useful:

- Availability: there have to exist functioning educational institutions and programs;
- Accessibility: educational institutions and programs have to be accessible to everyone without discrimination, assuring also their physical accessibility and affordability to all;
- Acceptability: the form and substance of education, including curricula and teaching methods, have to be acceptable;
- Adaptability: education has to be flexible so that it can adapt to the needs of changing societies and communities and respond to the needs of students within their diverse social and cultural settings.⁶³

Ethiopian Higher Education Proclamation (No.650/2009)

This one also states that higher education institutes should accept disabled students and provide material and professional support to meet their special educational needs (art. 40).

In view of these constitutional rights and policy direction, there is a long way to go to address the needs of persons with disabilities not only institutions of higher education but also in all walks of life in the country.

Building Proclamation (No. 624/2009)

The building proclamation number 624/2009, under its article 36(1) provides that, *“Any public building shall a means of access suitable for the use by physically impaired persons*

⁶³CESCR, cited above at note 41

including those who are obliged to use wheelchairs and those who are able to walk but unable to negotiate steps.”

This proclamation aims at protect the rights of education of disabled students in one and other, because university's are under the category of public building and expected to be constructed in accordance with the spirit of this proclamation which in turn guarantee their right to education in such institutions.

3.7. HIV/AIDS Victims

3.7.1. General overview

Human Immune Deficiency Virus/Acquired Immune Deficiency Syndrome is a serious disease discovered in 1981. As of date, no definite cure has been found. However, efforts are onto invent a cure for this disease. According to UN, the disease affects more than 60 million people. In this around and 50% of people affected by the disease have lost their lives, around 36 million people in the world are living suffering from HIV/AIDS. The disease normally contracted through unsafe sexual relations and other means such as unsafe blood transfusion etc. Taking into consideration of the magnitude of disease and its effect on the human rights of these people, a number of human rights organizations are started to work in this area since 1981.⁶⁴

3.7.2 International Commitment to protect the Rights of HIV/AIDS Victims

The UN in order to prevent discrimination shown towards the HIV/AIDS patients across the world adopted a number of declarations and started working through a number of its specialized agencies. Among the various organs, the WHO is the important one that has undertaken a number of efforts to these victims, accordingly, in order to promote their rights and to create awareness among various sections of people across the world, it has declared December 1, 1988 as World AIDS Day.⁶⁵

The economic and social council considering the work of various organizations to provide a unitary mechanism for better coordination between them, through a resolution in 1994 recommended to the General Assembly to establish a specialized agency to implement strategies to tackle the menace of AIDS in an effective manner.

⁶⁴Dr.T.S.N.Sastry, Human Rights of Vulnerable and Disadvantaged Group, University of pune, August 2012.

⁶⁵Ibid

Based on this recommendation, the UN in 1996, adopted the UNAIDS, a joint program to coordinate the activities of various organs working in this area. Since then UNAIDS adopted number of strategic plans to tackle the dreaded disease.⁶⁶

To extend support to the activities of UNAIDS, in a special session in 2001 on HIV/AIDS was conducted by the general assembly, in which member states of the UN, agreed to submit periodic reports on the various activities undertaken by each country to tackle the disease and to improve the situation of the affected in the world.⁶⁷

In the year 2000, the UN recognized the disease and placed it as one of the millennium Goals of the UN to control the problem and to protect the rights of this people.

Taking into consideration the magnitude of the problem, for the first time, the Security Council adopted a resolution in 2000 to limit the potentially damaging impact of HIV on the health of uniformed services personnel in peace keeping operations. In 2011, through another resolution, it reaffirmed its commitment to address the issue and requested the member states to increase their efforts in controlling the disease in conflict and post conflict situations.⁶⁸

3.8. Rights of HIV/AIDS Victims under International Instruments

HIV Positive Persons and AIDS Victims

Increasingly, human rights supervisory bodies have begun to focus on the vulnerability of people infected or affected by HIV/AIDS. HIV positive persons and AIDS victims are often subject to violations of many rights; some economic and social such as work-related rights and access to health care facilities, but also in relation to the enjoyment of civil rights, such as the right to privacy and freedom of movement. It is often difficult to separate violations of economic, social and cultural rights from violations of civil and political rights and states therefore need to adopt an integrated approach. HIV/AIDS demonstrates the indivisibility of human rights since the realisation of economic, social and cultural rights, as well as civil and political rights, is essential to an effective response to the epidemic.⁶⁹

The incidence of HIV/AIDS is disproportionately high in groups who already suffer from lack of protection and discrimination; such as women, children, those living in poverty, minorities, refugees and internally displaced people. In this regard, for example, the CEDAW Committee has stressed the link between women's reproductive role, their subordinate social position and their increased vulnerability to HIV infection.

⁶⁶Ibid

⁶⁷Ibid

⁶⁸Ibid

⁶⁹ibid

3.8.1. Under International Human Rights Standards

The key human rights principles essential for effective protection of people with HIV/AIDS are to be found in existing international instruments, such as the ICESCR; ICCPR; CEDAW; CAT; CERD; and the CRC . At the regional level, the American Convention on Human Rights, the European Convention for the Protection of Human Rights and Fundamental Freedoms and the African Charter on Human and Peoples' Rights also enshrine general state obligations, which are applicable to persons affected by HIV/AIDS. There are, however, to date (July 2004), no binding international human rights standards dealing specifically with HIV/AIDS.⁷⁰

The UN General Assembly has emphasised the need to counter discrimination and to respect human rights of people with HIV/AIDS in several resolutions (*e.g.* Resolutions 45/1990 and 46/20 1991) and has held a Special Session on the topics (*e.g.* in 2001). The UN Commission on Human Rights has also adopted numerous resolutions on human rights and HIV/AIDS (see, *e.g.*, Resolution 1989/1). Another international instrument worth mentioning is the Paris Declaration on Women, Children and AIDS (1989). The Office of the United Nations High Commissioner for Human Rights (OHCHR) and the joint United Nations Programme on HIV/AIDS (UNAIDS) have developed guidelines to assist states in translating international human rights norms into practical observance in the context of HIV/AIDS: The International Guidelines on HIV/AIDS and Human Rights (1998) and its Revised Guideline 6: Access to prevention, treatment, care and support (2002).⁷¹

Supervision: Since the epidemic began in the early 1980s, the international community has become increasingly concerned with the human rights protection of HIV/AIDS infected people. This is a crosscutting theme that UN treaty bodies have dealt with from their different perspectives, progressively developing the application of their respective instruments to respond to the pandemic and its consequences, setting out that states parties should include in their reports information on the effects of AIDS on the enjoyment of human rights of those infected and the measures taken to prevent discrimination against them.⁷²

The treaty bodies have dealt with HIV/AIDS in several General Comments and Recommendations. In this regard, CEDAW General Recommendation No. 15 - Avoidance of discrimination against women in national strategies for the prevention and control of

⁷⁰DemelashShiferaw and YonasTesfa cited above at note 50

⁷¹ Id, page 103

⁷² Ibid

acquired immunodeficiency syndrome (AIDS) adopted in 1990 and 24 on Women and Health adopted in 1994 are important. In the same vein, General Comment No. 3 - HIV/AIDS and the right of the child was adopted by the Committee on the Rights of the Child in 2003.⁷³

The Office of the United Nations High Commissioner for Human Rights (OHCHR) and the joint United Nations Programme on HIV/AIDS (UNAIDS) have developed guidelines to assist states in translating international human rights norms into practical observance in the context of HIV/AIDS: The International Guidelines on HIV/AIDS and Human Rights (1998) and its Revised Guideline 6: Access to prevention, treatment, care and support (2002).⁷⁴

3.9. The Right to Education of HIV/AIDS Victims HIV Positive persons

As far as the right to education of HIV/AIDS positive persons is concerned, many international human right instruments recognized it as one of the fundamental rights that we human beings have and impose an obligation on their signatory states to be abided by their consent and obliged them to add their endeavor to realize such right. Among others those disable persons have a right to education as they are a human being.

The basic interrelated ideas of education included or outlined in international policy documents, declarations, conventions, framework of actions, forums of, either adopted to all or for giving special protection for some group of persons, all confirm these rights to education, some of them are;

3.9.1. Under International Instruments

The Universal Declaration of Human Rights (1948): States that everyone has the right of equal access to public services in general and education in particular, and establishes the principle of free basic compulsory education for citizens to support the full development of human personality, and to strengthen respect for human rights and fundamental freedoms.

International Convention on Economic, Social, and Cultural Rights (ICESCR)

Article 13 of ICESCR recognizes the right of everyone to education and outlines the objectives of the education:

- The full development of human personality and the sense of its dignity,

⁷³Ibid

⁷⁴Ibid

- Strengthening the respect for human rights and fundamental freedoms,
- Enabling all persons to participate effectively in a free society,
- Promotion of understanding, tolerance and friendship among all nations and all racial, ethnic or religious groups.

The World Declaration on Education for All, EFA (1990)

Emphasizes the inherent right of a child to a full cycle of primary education, equal access to education for all, including those with special needs, in the same setting; commitment to a child centered pedagogy where individual differences are accepted as a challenge and not as a problem; improvement of the quality of primary education as well as teachers education; recognition of the wide diversity of needs and patterns of development among primary school children's individual needs.

The World Education Forum (2000)

This is about making the right to education a reality as it is enshrined in the 'Universal Declaration of Human Rights, 1948'. It is the extension of 'Education for All' move.

3.9.2. National Instruments

Though there is not a comprehensive and clear provision that declares education as a right in our legal system too many efforts are made in realizing it as international instruments in which Ethiopia is a member obliged to that effect.

The FDRE Constitution

The rights of citizens to equal access to publicly funded services and the support that shall be given to accommodate the needs of persons with disabilities is clearly stipulated in the Constitution (Art. 41 (5)). From this we can deduce that as the government takes the very mandate to make accessible educational infrastructures for its citizens in ascertaining their rights to education, disabled persons have a right to education and the government is duty bound to provide it in consideration of the rights of HIV victims.

The 1994 Education and Training Policy

This policy aims at ensuring equity and fair distribution of educational opportunities across regions, religions, gender, social class and any other considerations, may be one form of implementation of standards of the right to education. In determining the contents of Ethiopian educational policies on the right to education and the in efforts to further elaborate laws and policies

On the right to education, the following elements identified by CDESCR are useful:

- Availability: there have to exist functioning educational institutions and programs;
- Accessibility: educational institutions and programs have to be accessible to everyone without discrimination, assuring also their physical accessibility and affordability to all ;
- Acceptability: the form and substance of education, including curricula and teaching methods, have to be acceptable;

Adaptability: education has to be flexible so that it can adapt to the needs of changing societies and communities and respond to the needs of students within their diverse social and cultural settings.⁷⁵

Ethiopian Higher Education Proclamation (No.650/2009)

This one also states that higher education institutions should accept HIV/AIDS Victims and provide material and professional support to meet their special educational needs (art. 40)

In view of these constitutional rights and policy direction, there is a long way to go to address the needs of those persons in the instruments.

CHAPTE FOUR

The protection of the Rights of Vulnerable Groups in Ethiopian Higher Education

Institution: The case of Debre Birhan University

This chapter deals with rationalizing and justifying the protection of the rights of vulnerable groups via presentation, analysis and interpretation of the data gathered through interview, questionnaires and group discussion. Under this chapter we will try to transform the collected data into credible research final result.

4.1. Women in Higher Education Institutions

⁷⁵CDESCR, cited above at note 41

Ethiopian government policy has supported affirmative action for women since its inception in 1994. Women are admitted to higher education with a point GPA lower than men. This increased the female admission rate but also increased their attrition rate.⁷⁶

As courses for high dismissal rate studied in Jimma university shows, only 37% of female student had been thought by female teachers. The advantage of having female teachers were that female teachers were better than male teachers at understanding their problems, they could share their experience of the challenges they had to overcome, they could discuss their problem freely and finds solution for that.

Poor time management could be another reason for dropping out. When female students first arrived, their time was wasted by male students repeatedly trying to start love affairs. If love affairs did start, it was the man's who decided when they would meet so interrupting the women's studies time. The women agreed with mans decision to maintain the relationship and avoid losing academic benefits the relationship provided. Many students were from poor families and couldn't afford necessities for education and university life. They might try to resolve their economic difficulties through high risk sexual activities.⁷⁷

There was wide spread sexual harassment and discrimination from male students and sometimes, male teachers. Both consensual and non consensual sex could result in HIV, pregnancy and drop out.

Women can experience all types of violence from the childhood onwards, but most sexual violence is experienced in high school and in the 1st year university engagement. As a result of which they perceive having boy friend currently and being married could be serve as a shield against non partner sexual violence in the university, although they were still susceptible to sexual victimization by their intimate partners.

The other reason included unapproachable instructors, boyfriend lack of support and belief that they could not compete because affirmative action had allowed them to be admitted with lower grades than men.⁷⁸

4.2 General Overview of HIV/AIDS infected students in Higher Education Institutions of Ethiopia

In Ethiopia, HIV prevalence rate among people ages 15-49 is 1.5 percent according to country's 2011 demographic and health survey. However, youth, a sub-group of this

⁷⁶Tirussew, cited above at note 46

⁷⁷ibid

⁷⁸ibid

population, tend to be very sexual active and have more sexual partners, thus placing them at a greater risk of HIV infection. Further students of higher education institutions (HEIS), the majority of who fall into the age 15-49 age groups, are often financially insecure and therefore susceptible to economic incentives that can lead to higher risks sexual behavior. For instance the young women at HEIS may form relationship with men outside HEIS environment to help meet their financial needs. If it is note that in Ethiopia, prevalence among women is higher than among men in most age groups.⁷⁹

Other factors contributing to increased risk of HIV among youth, particularly young women, include lack of comprehensive knowledge about HIV/AIDS, poor access to health services and commodities, early sexual debut and sexual coercion of violation

In general the common factors that can leave the students of higher education's vulnerable to HIV infection include:

- ✓ Lack of comprehensive knowledge about HIV/AIDS and sexual and reproductive health issues;
- ✓ Financial insecurities
- ✓ Lack of proper counseling
- ✓ Absence of discussion about HIV/AIDS and sexual and reproductive health between students and parents before joining university
- ✓ Peer pressure and etc...⁸⁰

4.3. Overview of Students with Disabilities in Ethiopian Higher Education Institutions

Traditionally, very few students with disabilities reach higher education levels. However, in the nearest days we witnessed some disabled persons in such institutions. Rewardingly international initiatives and documents have played an important role to promote the right and participation of students with disabilities in higher education institutions in various countries worldwide. But compared to the number of persons with disability that we have still it is next to nil.

In Ethiopia higher education institutions is expanding; however, the participation of students with disabilities in higher education institution is still very small⁸¹. The reality that we have witnessed also shows that the condition of students with disabilities in higher education

⁷⁹ibid

⁸⁰ ibid

⁸¹YaredGebreegziabher , Policy and Provisionfor Students with Disabilities in Higher Education, *The Ethiopian Case,2008*

institutions in Ethiopia is not changing; almost all of students with disabilities face serious barriers in their education. In higher education institutions students with disabilities get assistance from their peers and individual teachers who have good will.

Except Addis Ababa University there is no organized form of support for Students with Disabilities in Ethiopian Higher education institutions (MOE, 2006; Yared, 2008).

The other difficulty in our higher education system is, with regarding to a written university policy related to students with disabilities almost all public and private higher education institutions of Ethiopia have no written policy that aim to address the need of students.

4.4 Protection of the Rights of Vulnerable Groups in DBU

Background of Study Area

Debre Birhan University is one of thirteen new Universities which were established in 1999 E.C (2007) by the Ethiopian government. It is located in Amhara Region, North Showa Zone, in the town of Debre-Birhan. By this days, the intake capacity of the university will have grown to >12,000 regular academic trainees.

Nowadays, the participation of vulnerable groups in education sector is becomes increased than ever. With this increase in enrolment to higher education, a relatively significant number of students under the category of vulnerable groups are also joining higher education institutions.

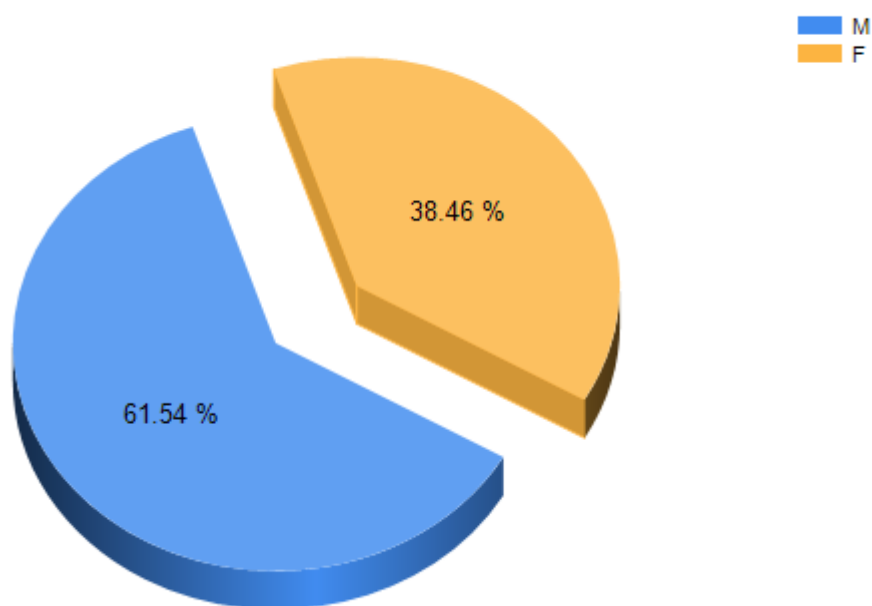
Accordingly, though their number is not that much significant there are vulnerable students in Debre-Birhan University. As the data explored from DBU Gender directorate, there are around 4277 female students, 1 HIV/AIDS victim student, 35 disabled students; totally 4313 vulnerable groups in our university⁸².

4.5 Documentary information and analysis of data

Number of students of DBU registered in 2009

⁸² Interview with W/roHaymanot, Director of Gender Directorate, on 2 December 2009

Percentage of Registered Students by Sex



As data obtained from DBU registrar shows, there is a gender disparity among male and female students, i.e. in their enrolment, in their academic performance, in academic dismissal and in graduation.

4.5.1 Gender Disparity in Enrolment

Table 1 Regular students of DBU registered from 1999-2008 EC.⁸³

No.	Year	Sex		
		Male	Female	Total
1	1999	548	177	725
2	2000	1316	550	1866
3	2001	548	916	1464
4	2002	1610	721	2331
5	2003	1961	1058	3019
6	2004	1502	1073	2575
7	2005	2351	1203	3554
8	2006	2144	1241	3385
9	2007	1662	1755	3417

⁸³Data Obtained from DBU Registrar, on 11 December 2009

9	2008			
G.Total		13642	8694	22336

Since the last few years there has been considerable increase in the number of students being enrolled for university education in Ethiopia. But gender disparity still lingers on behaving in favor of males. The enrolment of female students in the undergraduate regular program at DBU has increased. The percentage of female students in enrolment is still underrepresented in DBU. The rising scenario by itself was the result of the affirmative action given by the state for female students to join university education. This means that yawning gender gap (e.g. 40% in DBU in 2007) in enrolment in the universities is still persisting.

Overall, female students' enrolment in the regular undergraduate degree studies of the university under study went on increasing since the last few years mainly because of the affirmative action strategy given on the Ethiopian Higher Education Entrance Certificate Examination (EHEECE) at grade 12 for females by the Ministry of Education (MOE).

However, there was still considerable gender gap in favor of male students.

4.5.2 Gender Disparity in Academic Dismissal

As compared to males, an appreciably less number of female students were being enrolled in regular undergraduate degree programs of the universities under study, which confirm. Quite amazing, however, a relatively larger number of them were being forced to leave their university education because of academic dismissal. Thus the numerical fact of gender disparity in this case is not in favor of males but female students though it is a catastrophic problem against their opportunity to survive their study in university. A relatively larger number 53% of the total of female students were academically dismissed from DBU within two academic years (2004-2005 to 2005-2006 G.C). In sum, it is only in academic dismissals that female students averagely outnumber their male counterparts in university academics. Thus, the gender disparity in this case is problematic not for males' numerical superiority but for less number of females get enrolled and greater number of them get dismissed as compared to their male counterparts. Besides their deprived academic base and their evolution from gender insecure socialization, female students are often victims of sexual harassment in universities by male community members of universities. The cumulative effect of these factors is highly responsible for the larger number of female students' academic dismissal from university education. In sum, the reasons for gender disparity

against females in university education in general and in academic dismissal in particular can be complex, but are often due to a range of socio cultural, economic and political factors.

4.5.3. Gender Disparity in Academic Performance

It should be noted that the parameter utilized in this study to describe the academic performance of male/female students was their CGPA within the range of honorable achievements at the moment of graduation (a CGPA of 3.25 and above for bachelor degree).

This is, of course, not to mean that they were not entirely good in their academic work. It means that the honorable lists seem to be the reserved “right” of male students.

Only a diminutive proportion of female students, about 10 percent in average regular undergraduate degree students, were within the range of distinction and above.

Dealing about the reasons why female students perform less than that of males and why they out number their male counterparts in academic dismissal pertaining to university education is almost similar to talking about two sides of the same coin. In the undergraduate degree studies they were competing with their male counterparts in university education with relatively poor academic base which has a detrimental impact on their academic performance and/or academic dismissal. It is perhaps logical and persuasive that as the level of their academic performance decreases the level of their academic dismissal increases and vice versa, which in turn would have strong implication on the representation of female student’s in the postgraduate studies.

3.5.4. Gender Disparity in Graduation

Table 2 number of graduates from DBU⁸⁴

No.	Year	Graduate numbers		
		Male	Female	Total
1	2001	457	109	566
2	2002	1246	399	1645
3	2003	428	561	989
4	2004	1089	445	1534
5	2005	1625	839	2464
6	2006	888	537	1425
7	2007	1543	705	2248

⁸⁴Data obtained from DBU Registrar, on 11 December 2009

8	2008			
G. Total		7276	3595	10871

The percentage of female student graduates from the regular undergraduate at DBU in 2006 was 16 percent.

The percentage of female graduates from within the last five years has remained below 20, with slight rise and fall in some years.

Described above are the quantitative indicators of gender disparity in enrolment, academic dismissal, academic performance and graduation of the regular degree students of DBU. It can be discerned that the quantitative reality of gender disparity in these four forms (enrolment, dismissal, performance and graduation) entirely behaves against female students in the university under study. This is not mainly due to the lack in policy in favor of females' education as there is affirmative action policy implemented for females' opportunity to join university education over the last two decades. It is because of culture in the most generalized term. In most parts of Ethiopian society the ways of life (in which patriarchy, differential gender socialization and marriage etc) highly impede females' equal public activities (example, education in general and higher education in particular) with males. At the level of postgraduate studies it is marriage and the resultant family responsibilities that obscure females' equal representation with males. Based on the qualitative data obtained during my fieldwork (see the next section), we can say that after getting graduated from their undergraduate studies most females prefer marriage to their opportunity to pursue postgraduate studies. Once getting married, however, their probability to pursue postgraduate studies could be very less partially because their husbands show unwillingness to encourage them for postgraduate studies. In sum, gender disparity in university education is the cumulative effect of socio-cultural constraints (such as marriage, religion, patriarchy, differential gender socialization) against females' opportunity to equally involve indifferent education levels with males.

4.6. Finding and discussion on the rights of women

Analysis of Data Obtained from the Interview

As pointed from the outset interview was guided by some open ended questions related to the implementation of the special protection for female students. More specifically, the following questions were posed to female students interviewed.

1) Did you face any difficulty because of you are being a female?

Concerning this question female students respond that; as member of university population, female students also suffer from gender-specific problems. Their answer to this question exposes the fact that the image of female students in academic excellence quite deteriorated.

Even instructors were unwilling to recognize self-contained honorable academic performance of their female students. One top ranking female student, for example, narrates this:

“መምህራኖችና አንዳንድ ተማሪዎች ‘እሷ እንደ ወንድ ትሰራለች’ ይሉኛል”, (instructors and some students call me, she performs like a male). The message is that males’ gender in our society is often associated with a dominating power while that of females’ is traditionally recognized in all subordinate spheres of life not only in academic issues. Sexual harassment and related violence are also the difficulty which faces them as they respond for us.⁸⁵

Particularly they told us the following problems as challenges they would face;

- Sexual harassment(both by students and instructors in many ways);
- Lack of provision of facilities like library, space recreational place and etc...;
- Absence of affirmative action in the in its full sense i.e. only limited to granting priority while choosing the departments and giving tutorial, no more;
- Feeling of inferiority complex;
- Love affairs;
- Peer pressure and etc...⁸⁶

2) How do you overcome those challenges?

In order to obtain an answer for this question we were approached 18 female students of DBU in which all of them respond in the same way toward halting down the said problems.

As a matter of fact almost all female students in this campus did not escape from the aforementioned challenges. Despite this fact we are attempt to avert this challenges by using our ultimate efforts, because it is something repugnant to achieve our goals.

Accordingly, among the said problems, sexual harassment is the prominent one, because it comes from both students as well as instructors in many ways under the veil of love.⁸⁷

⁸⁵ Interview with DBU Female Students, on 13 December, 2009

⁸⁶ ibid

⁸⁷ibids

Thus, we are tried to stop this via approaching and giving advice to our fellow male students and in more serious case we are referred the matter to gender directorate. Having a separate library and applicability of affirmative action has paramount importance for female students, but absence of affirmative action and adequate separate library expose female students for many problems, however, they told us that although, this problem is there we are digging all possible means in order to sustain and be competent academically in the same passion with male counter parts.⁸⁸

3) What type of support from the university?

Interviewed female students said that, though there is an institutional framework (Gender Directorate) which was established to change the attitudes in educating women by creating awareness campaigns and trainings for concerned bodies and encouraging women to achieve their goal and to continue the application of some privilege (giving tutorials, giving priority while choosing department and etc.) for more female students in DBU, however, there is not as such satisfactory result in achieving the goal which is protecting the human rights of female students.

They also told us that in order to improve the participation of females in education university give support through providing and strengthening counseling services, gender trainings, tutorial, Services and capacity building programs nothing more.

4.7. Commitment of DBU towards the protection of the rights of female students

As w/ro Haymanot, DBU gender directorate told us an attempt was made to overcome those challenges through the following mechanisms.⁸⁹

Support and guideline issues

- Follow up mechanisms of problem faced by female students in the university;
- Gender directorate commitment to respond and act accordingly;
- Provision of facilities like; toilet, library, space and refreshment area for female students;
- Availability of clear rules and regulations in the campus on sexual harassment and rape;
- Solving the overall problems of female students;

Classroom and academic issues

⁸⁸ibid

⁸⁹Interview with W/ro Haymanot, cited above at note 82

- Support of female students through tutorials;
- Follow up result of female students in test and assignment;
- Encouraging and giving chances to female students to participate equally with their male counter parts;
- Guiding and counseling of female students;
- Creating a conducive environment for female students in teaching learning process;

Out of classroom and gender issues

- Avoiding of gender sexual harassment of teacher on female students in their approaches;
- Encouraging the participation of female students in class and group assignment;
- Creating the awareness of male students in order to respect female students and even making them a pivotal role player in doing so.

4.8. Finding and discussion on the rights of HIV/AIDS Victims

Person infected by HIV/AIDS is obviously identified as vulnerable groups and they were required the legal protection so as to enjoy the right they were endowed by the mere fact of being a vulnerable. Despite this fact a person or student with HIV/AIDS in DBU are not entitled to enjoy their rights. This is because they were not separately known from the rest of the students.

In the course of conducting this research we contacted sister Mastewal, who is an officer of HIV center in DBU. She told us that their commitment towards HIV positive student is only limited to promotion and prevention of HIV/AIDS. In doing so, they use different channels ranging from preparing seminar, panel discussion as a means of promotion and allocating condoms as a means of prevention. The above said means are in no means fully protect the right of the person already infected by HIV/AIDS. Even what worsen undermines or put in question the effort of stakeholders which mandated with the duty of protecting the right of those persons is that, there is a few students who avails themselves from their advice and exposed themselves voluntarily to undergo HIV diagnosis. In other words it could not difficult to appreciate the role of HIV center in DBU is very minimal.

Eventually, we able to cognizance of that due to the less attention paid and efforts taken in DBU, students with HIV/AIDS not entitled the rights she/he endowed by the mere fact of being vulnerable.

Table 3 Number of students voluntarily exposed themselves to HIV/AIDS test⁹⁰

Year	Department	2014/15		2015/16	
		Male	Female	Male	Female
1 st	Engineering and accounting	5	1	18	7
2 nd	Engineering	4	1	17	5
3 rd	Engineering	7	2	16	4
4 th	Engineering	3	1	14	6
5 th	Engineering	3	1	16	8
Total		22	6	81	31

As we can infer from the above table there were 28 and 112 total numbers of the students who are exposed themselves to HIV/AIDS test voluntarily in the consecutive year 2007 and 2008 respectively and one student who was HIV/AIDS victims.

4.9. Students with Disabilities in DBU

Though, recently the center within the Gender Directorate, named DBU Disability center, was established before in January 2016.⁹¹ Hence it is this center takes a mandate to follow up students with disabilities and to add its endeavors in ascertaining their right and accessing what is needed for including defending any of their interests.⁹²

Teacher Sintayehu Ambachew, *coordinator of the center*, stated that “the center is always hardly working and add all possible efforts for realizing the rights”. As Teacher Sintayehu told us during interview, the center makes available all the necessary provisions for those students, mainly;

- Accessing infrastructures as necessary and relocating dormitory and classes as the most favored to these students
- Assistive materials and technology: according to the coordinator the center had delivered all the necessary materials like, Braille, white-cane, slate and styles and print outs. And also 14 computers are available to for them.

⁹⁰ Data obtained from DBU Students Clinic on 13 December 2009

⁹¹ Interview with Teacher Sintayehu Ambachew, *coordinator of the DBU disability center* on 10 December 2009.

⁹² *ibid*

- Counseling
- Monetary support for visually impaired
- Strived to defend their rights if they are come up with complaints⁹³

4.9.1 Finding and Discussion on the Rights of Persons with Disabilities

In conducting this paper we tried to interview and discussing with focus group available students with disability. We forward the following questions for them and they respond as provided.

1. Did you face any difficulty with in the campus because of your disability?

Regarding this question the answer of all the students is YES! They stated that “forget our disability issue; campus life by itself is very difficult”. They told us that they faced many more difficulties starting from the way they move to their academic concern; many barriers are impeding them both in their academic and non-academic involvements. They stated that there are defects in infrastructural installations; including setup of the buildings are not compatible with their needs and there is a deficiency in necessary materials. Further, as they added and as we also witnessed, because of the university is under construction there are ups and downs everywhere and it makes difficult to going to classrooms, cafeteria and move in the campus. Henceforth as to them apart from their disability the lack of materials needed to them and such a like defects in the campus highly defeats them and their interest.

2. Are the buildings, topography and any infrastructural installations including building made in consideration of you?

The building proclamation number 624/2009, under its article 36(1) provides that, “Any public building shall a means of access suitable for the use by physically impaired persons including those who are obliged to use wheelchairs and those who are able to walk but unable to negotiate steps.”

And The Higher Education Proclamation (No.650/2009) in its Art. 40 (2, 3) stated that; “Building designs, campus physical landscape, computers and other infrastructures of institutions shall take into account the interests of physically challenged students. Institutions shall, to the extent that situations and resources permit, relocate classes, develop alternative testing procedures, and provide different educational auxiliary aids in the interest of students with physical challenges.”

⁹³ibid

By telling the notions of this stipulation we forward questions for these students and tried to assess whether the conditions were as provided by the law towards addressing the right of such students. They respond half positively; in one hand they recognize the treatment given for them around dormitories and admire the university's endeavor operation towards fixing problems. However, still they claimed that the landscape around classrooms, relocation of classes is not conforming to their abilities and further they added that "we cannot able to shop as the way to go to the shop is more than difficult."⁹⁴

However, we find that it is too little that the university conformed to its obligations. First of all, as we assesses till the recent days the entrance to every buildings in the campus were very difficult, even for the non blind, to walk-away on it. Secondly, the relocation of class rooms does not take into considers these students, as some of the students even obliged to walk up to upstairs. Finally, there are many ups and downs with holes and peaks here and the in the university which in turn makes very difficult to them in moving around the campus. The positive performances are regarding relocation of dormitories and the environment there, the university arranges a safe place in which they are assigned on the ground with their own shower and latrines. Additionally, the university starts from the recent weeks operates to adjust roads and the entrances of classrooms and other buildings in a manner compatible with the interest of these students.

3. What type of support from the university?

They respond that "we have received certain supports from the university through the disable student's center but many more needs to be done to improve the situation we survive as we face challenges". As to them they received supports like;

- Material support: Regarding material support especially those with visual impairments responds that the university gives them a white-cane, while they claimed that there is too much inadequacy concerning necessary materials. Those other than those with visual impairments stated that print outs like power points, teaching materials and other guides are accessed to them saving the insufficiency in quantity.
- Monetary support: an amount of 200 birr given to those with visual impairments monthly. While others are not conferred to any monetary support.
- Counseling: they all answered that we have got a guidance and counseling service from the center.⁹⁵

Do you get any assistive technology and materials from the university?

⁹⁴Interview and Focus Group Discussion with DBU Disabled Students, on 14 December 2009

⁹⁵ibid

To assess the provision of assistive technology and teaching materials a question was posed to participant to access whether they have been provided with any assistive technology services at the university or not. The participants, especially those with visual impairments answers that they have got slate and styles, and white-cane from the university and even though it not adequate there is an access of some books in the form of Braille for law school students. However, visually impaired students from other departments claimed that they have not an access to such a like materials. Even if, there are some initiatives in provision of materials but it seems put there for sample as it is too small in terms of number.

Concerning the question we raised whether they have an access to assistive technology like computers and any digital provisions, they respond to the negative that “actually we take a computer training but we did not have an access to it...we did enabled to use computers because we have not an access to it.”⁹⁶ We were raised similar question for *Teacher Sintayehu Ambachew, a coordinator for DBU disabled students center*, he replied as that “we have 14 computers which is more than needed as number of students in need of computer are 9 (visually impaired)” but students disclaimed that they have not an access to those computers.⁹⁷

4.9.2. Analysis of Findings on the Rights Persons with Disabilities

The right of the citizens to equal access to publicly funded service and the support that shall be given to accommodate the need of person with disability is clearly stipulated in the FDRE Constitution Article 41(5) and number 50 of the education and training policy (1994) further states that, attempts shall be made to enable person with disability learn in accordance to their potential and need.

Basing our study to the above classification, which of the persons with disability are recognized and enjoy their right in DBU. The possible question raised at this juncture is that once they were recognized could they enjoy the special protection based on the available law? In order to answer this question we have conducted an interview with different individuals who deemed to have an interest and responsibility.

Whether the person disability recognized or not based on the aforementioned classification, Ato Sintayehu Ambachew, who is a coordinator of DBU disability center told us that, the university currently recognize and give all possible protection and services prominently person with visual impairments.

⁹⁶ibid

⁹⁷Interview with T.Sintayehu, cited above at note 91, page 45

With regard to other type students with disability, no such protection and service are rendered by the initiation of the university, but in case they come by themselves an aid is given.

The second question which pertains to: since, the university recognizes students with visual impairment as disabled persons; does the university render such protection and service in accordance with the relevant laws?

In order to answer the said question we have made an interview with 8 students with visual impaired, among which 5 of them are male students and the rest 3 of them are women's.

Almost all of our respondents are told us that as there are a limitation on the service rendered and protection granted in practice. Such limitation associated with the following challenges:

- The significant challenge pertains to educational problems faced by students with visual impaired where: shortage of instructional materials, text, and reference books (written in Braille, recorded cassettes) and teacher's negative attitude. Furthermore, students expressed that the academic competition has been more frustrating for them than non disabled students.⁹⁸
- The other challenges these students told us that, there is a limited instructor-student interaction was observed both inside and outside the class. Unlike non disabled students, student with disability have a serious problem to have contact with their instructor because of the physical barriers. Moreover, they said some instructor were unwanted to be asked by us and even when request certain privilege they deny and told us as to we have compete like any other students.⁹⁹
- The other challenges is pertains to student-student relationship. With regard to this there are mixed feelings, both negative and positive have been observed.

The trained in this university shows us that student with visual impairment lived in a dormitory separated from non disabled students.¹⁰⁰ On this point Ato Sintayehu Ambachew, a coordinator of DBU disability center told us that the reason students with visual impairment lived separately is not groundlessly, rather we have resorted to such trained having we are genuinely examine and outweigh the merit of being live together with non disabled students

⁹⁸Interview with students cited above at note 95

⁹⁹Ibid

¹⁰⁰Ibid

or separately.¹⁰¹ Accordingly, it appears sound and logical keeping their dormitory separate. Conversely, student with visual impaired confess contrary and said that they don't have any sort of relation with non disabled students. Thus, they told us that the prevalence of loneliness and difficulty of dating is one of their problems they were bothered with.¹⁰²

- Lack of facilities and services is another prominent problem. Students with disabilities, particularly student with motor disability have no access no toilet in the dormitories, around class rooms and anywhere in the campus.¹⁰³ As we have raised it earlier in the interview we have made with the coordinator of DBU disability center, Ato Sintayehu Ambachew, the university recognize only visual impaired student as PWDs by its own initiation. So in the course of conducting this research we were visit the dormitories of student with visual impaired of both men and women. In men dormitories they have separate toilet from non disabled person, but in case of female students, they have no such treatment.

The situation is worse on the students with motor disability, from the very outset they are not recognized and known by the university. As a result the problem is more severe on them. One of the respondent in narrating the hurdles and inconvenience that encountered state that:

“If you are really interested in solving our problems, the special care should cover all aspect of life of the individual not only while attending classes although concerning the dormitories specially the use of bathroom. I myself, for example, have never washed my body in this campus since I have joined the university. It is not for at all.”

With regard to dormitories in DBU special arrangement is made to get room in the first ground in order to easily accessible for students with visual impairment. But students with motor disability disclosed that there is no special arrangement made to accommodate their needs, because they were not recognized by the university.¹⁰⁴

¹⁰¹Interview with T. Sintayehu, cited above at note 91

¹⁰²Interview with students cited above at note 95

¹⁰³Ibid

¹⁰⁴Ibid

- The other problem faced by students with visual impaired were that, many activities undertaken in this compound didn't take into account the interest of student with visual impairment.¹⁰⁵ These activities include:
- ✓ There is construction here and there and the road is closed by displaced materials in which only visual person can go safely over it;
 - ✓ Absence of stopping a car in the parking is also another problem;
 - ✓ The road in this compound is constructed without consideration of student with visually impaired. In the event these student looking for class, an café they faced with abysm on the edge of the road and no indicator to protect the students;¹⁰⁶
 - ✓ Other problem of the students with visually impaired students is accorded in the course of teaching-learning process, particularly during exam. These students take an exam with an assistance of another person to help the in writing. Here what is the problem is the assistor is third party to course and has no knowledge about the course of the he will help, hence he commit an error due to lack of notice about the terms. For example, law courses use some Latin terms (*mutatis mutandis*, *pacta sunt servanda*, *lacunae*, and etc...) which only law students are expected to know them. But, the teachers while examining the examwas not tolerate such problems. There was also problem while teacher delivering a lecture, he may use words like 'this', 'that' and etc pointing by fingers. Such type lecture delivering means is not concomitant with nature of with visual impairment and burdensome on them.¹⁰⁷
 - ✓ The other prominent problem that student with disabilities faced is absence of counseling and guidance about sexual reproductive health issue. Beside this, they were not accessible to materials like condom and contraceptive for male and female students respectively not because of its unavailability in the campus but, due to inability to access it easily like any non disabled student.¹⁰⁸

4.10. Findings and Discussion with regard to vulnerable groups in general

The rights of citizens to equal access to publicly funded services and the support that shall be given to accommodate the needs of persons in the category of vulnerable groups is clearly

¹⁰⁵Ibid

¹⁰⁶Ibid

¹⁰⁷Ibid

¹⁰⁸Ibid

stipulated in the Constitution (FDRE 1995, article 41(5)). The Education and Training Policy (1994) further states that attempt shall be made to enable them to learn in accordance to their potential and needs. In view of these constitutional rights and policy direction, there is a long way to go to address the needs of those vulnerable groups not only institutions of higher education but also in all walks of life in the country.

As far as the case of DBU is concerned, we try to analyze the above respective findings and discussions on female students, HIV/AIDS victim students and students with disability as follows under the title of vulnerable in DBU;

4.11 Situational Analysis of DBU

Debre-Birhan University does not have any standing policy on admission of SWDs. At the point of entry, DBU has no information about the disability profiles of students and their special educational needs and the mechanism of their identification. Consequently, the statistics of the SwDs at DBU has always been fragmented and incomplete. The University has been clear only on the number of blind students in the campus. Furthermore, record keeping and follow-up in the academic and psychological adjustment of SwDs at the University is poor or non-existent.¹⁰⁹

The financial and material assistance at the University was totally channeled to only blind students. They have also been beneficiaries' special counseling service Unit organized under the Dean of Students' Office. Students with other types of disabilities have never been obtained special assistance like that of the blind. Studies unveil that there are students with severe motor disorders, hearing impairment and other forms of hidden disabilities that are badly in need of special assistance.¹¹⁰

Generally, as we infer it from the aforementioned discussion the problems faced by vulnerable groups at DBU can be highlighted in the following five broad areas.

A. Admission

There is no scheme of identifying the different profiles and needs of students with disabilities at the time of admission. Furthermore, the choice of students with disabilities to study different fields has been highly limited to few departments and most are closed to them and admission depends on the good will of the respective departments.

B. Educational Problems

¹⁰⁹Interview with T. Sintayehu, cited above at note 91

¹¹⁰Ibid

This includes attitudinal barriers (instructor's bias and inconsiderateness), lack of learning-teaching devices, and materials (Braille, talking books, large prints, lenses, readers, hearing aids, sign language interpreters etc.), inclusiveness and flexibility in the curriculum, teaching methodology, examination as well as lack of special assistance during exam time, particularly for visually impaired students.

C. Psychosocial Problems

There is a limitation in social relations between students with disabilities and non-disabled students at DBU. Consequently, psychological reactions such as feelings of rejection, loneliness and depression are observed among some students with disabilities. The peer support is also very minimal. Furthermore, anxiety and worries of employment after graduation are frequently reported by students with disabilities.

D. Architectural Barriers

This includes accessibility of buildings (dormitories, dining halls, classrooms, libraries, offices, recreation centers, play grounds, pathways etc.) and difficulties related to facilities & fixtures. Students with disabilities particularly those with motor disorders such as wheelchair and crunch users as well as those with other forms of physical problems are unable to use the existing facilities and fixtures set-up for typically developing persons. These may include toilets, showers, wash rooms, computers, public phones, tables, chairs etc.

E. Economic Problems

This is the need of financial assistance to cover expenses such as payment for those who assist them in reading, taking notes, washing clothes and other services, purchasing assistive devices or equipments as well as for medication. They have also a need for a place to stay during the Summer Vacation as most of them come from boarding institutions or low income families.

Generally, there are several challenges experienced by vulnerable groups in the course of enjoying their rights. Accordingly, one of the prominent problem being an obstacle toward availing their right is psychological problems resides both in vulnerable and non vulnerable. So many individuals perceived vulnerable groups as a weak, hopeless, dependent and unable to learn and need help and charity from other. The misconceptions of causal attribution added to the miss understanding of the capabilities of person, particularly for the person with disabilities have contributed to the low academic performance.

The other challenge pertains to services rendered in this university. We all know vulnerable groups belong to one of the poorest segment of society. This is true in this compound, even though it is entirely related to economical problems, there academic performance is poor. Therefore absence of suitable and comfortable services in this university

Because of the aforementioned problems the following human rights of vulnerable is subjected to violation:

The mere vulnerability makes the human rights of vulnerable groups at stake. The human rights of vulnerable groups supposed to be existed in DBU are subject to violation. Accordingly, pursuant to our analysis the following human rights of vulnerable groups are at risk. These people encounter difficulties in exercising their legal rights freely as guaranteed by both International Law of Human Rights and by the Constitution of a country.

As provided under article 41(4) of the FDRE, constitution the state has obligation to allocate every increasing resources to provide to the public health, education and other social services. More over article 90(1) requires national policies, “to the extent the countries resources permit”, to aim for the provision of all Ethiopian access to education. Accordingly to the extent resource allow every person has the right to education and health. This right also recognized under several international instruments to which Ethiopia was adhered. For instance ICESCR (articles 13 and 12 provides to this effect).

As we can clearly grasp from the aforementioned provisions, every person has the right to education and health. Now let’s appreciate these legal guarantees in line with the practice of DBU.

4.12. Violated Rights of vulnerable groups in DBU

The right to health of disabled students: This right is stipulated under article 41(4) of the FDRE constitution and article 12 of ICESCR, despite this guarantee, the reality on the ground observed in the DBU manifested this on the contrary. For student with disability, particularly for those with motor disabilities there is no separate bathroom which takes into consideration of their nature not only bathroom there is the problem of toilet too.

This is also the common problem for visually impaired female students as there is no separate toilet for them.

Affirmative action for female students: Affirmative action is the constitutional rights of women, by virtue of article 35(3) of the FDRE constitution. But, the legal as well as institutional practices are recognizes this right with respect to choice of program of study pursuant to article 64(1) of DBU legislation.

The right to education: As provided under article 41(3 and4) and article 90(1) of the FDRE constitution and article 13 of ICESCR, everyone has the right to education to the extent the resource of the country permitted. Beside these provisions which imposed duty on the state generally, articles 35(3) and 41(5) of the FDRE constitution and article 36 of Building proclamation number 624/2009 grants special protection to vulnerable groups in order to realize the right to education directly or indirectly. Despite these fact vulnerable groups, particularly, female students and disabled students of DBU were unable to enjoy this right in satisfactory manner.

The right to equality: This right recognized both under article 25 of FDRE constitution and article 26 of ICCPR. As provided under these provisions all persons are equal before the law and entitled to equal protection of the law.

As we can infer from the aforementioned violated legal provisions (The right to education, health, affirmative action) apparently entails that the absence of equal protection or less protection rendered to vulnerable groups.

4.13. Whether or not a legal as well as institutional framework of DBU grants a special protection for vulnerable groups?

Of course, both legislation and institutions established for the purpose of implementing the legislation give the special protection to these groups.

Accordingly, the following rights are recognized;

- The right of affirmative action: Article 64(1) of DBU legislation recognizes special protection for female students and other socially disadvantaged groups while making choice of program of study.
- *Inclusive education and support:* As provided under article 137 of DBU legislation, the university has the responsibility to provide inclusive education and support in an attempt to facilitate the active involvement of students with visual and hearing impairment, student with physical challenges and students with intellectual disability and etc.

As far as the institutional frameworks are concerned, the university establishes the following institutions to look after the rights of vulnerable groups and its implementation.

- ✓ Gender mainstreaming (Article 135 of DBU legislation): this office mandated with the following duties;

- a. Facilitation of activities planned to support of female students such as tutorials, training on assertiveness, study skills, lifelong skills tasks.
- b. Provision of counseling service to female students.
- c. Establishing and supervising female student's club activities.
- d. Motivating female students by providing awards to outstanding female students.
- e. Involving in all University activities planned to promote female participation in various extracurricular activities.
- ✓ HIV/AIDS prevention and control center (Article 136 of the same): This center shall have the following duties;
 - a. Raise the awareness of the university community and society at large on the HIV/AIDS pandemic.
 - b. Coordinate HIV/AIDS prevention, care and support efforts of the university.
 - c. Organize and deliver short training on lifelong skill, VCT, seminar and workshop on HIV/AIDS prevention, care and support effort of the university.
 - d. Promote a healthy sexual behavior.
 - e. Care and support victim of HIV/AIDS disease.
 - f. Fight against stigma and discrimination of people affected by HIV/AIDS.
- ✓ With regard to the disability center: This center was established on 2016
 The directive was promulgated on 2007 to make effective the role of this center.
 Though, not approved by the senate of DBU it provides the following duties of the center under its article 4:
 - a. Giving counseling and guidance and support the disabled students by materials
 - b. Facilitating the means in which the mentally and physically disabled students become beneficial
 - c. Facilitating, promoting and conducting research to that effect
 - d. Creating awareness for the university's community with regard to disabled person

3.14. Is there a gap in implementation?

Before we are proceeded to ascertain the existence of gap or not in implementation, we opt to assess the way the DBU legislation incorporate the rights of vulnerable groups in the full manner. Accordingly, the legislation of the university did not incorporate the rights of vulnerable as required under FDRE constitution and international instruments.

As far as the implementation is concerned, obviously, there is a gap in implementing the rights of these groups as we have witnessed it from the interview, responses of questionnaire, focus group discussion and data obtained.

4.14 .Trend of A.A University

An attempt was made to explore the type of back-up support given to the vulnerable group at DBU. There is a long-standing tradition for supporting blind students though providing Braille paper, tape recorders and cassettes.

Besides, blind students receive Birr 120 monthly as pocket money and Birr 400 for preparing and writing senior essays. These days, computer training is also given for blind students. However, other students with disabilities such as those low vision, the deaf, the hard of hearing as well as those with motor disorders. It was in the recent summer that students with motor disabilities have started to gain special attention and got the opportunity to stay their vacation in campus for the first time. As most of the vulnerable groups are coming from low income families as well as from boarding schools or institutions, they would prefer to spend the summer-vacation in the University. It is encouraging to note that the University has planned to extend its support to all SwDs which may include the deaf, the hard of hearing, the weak sighted (low vision), those with motor disorders and others.¹¹¹

Chapter Five

¹¹¹Tirussew, cited above at note 46

Conclusion and Recommendation

5.1. Conclusion

This study notes that some sporadic and spontaneous steps had been taken to improve the protection of vulnerable groups.

The purpose of this paper is to assess the protection of vulnerable groups in Debre-Birhan University and to examine how the university follow up and address their rights. It was not the intent to conduct an exhaustive survey which ground definite statements about current situation. It is possible, however, to point out and assess some key issues regarding the rights of vulnerable students and highlight challenging instances based on the findings in this study. In doing so we tried to explore data's from the university's gender directorate, from the disability center make an interview with the director thereof and personally interviewing those students and also distributing the questionnaires to the concerned. As it has discussed widely educational participations of vulnerable groups are encounter several problems. Solving those problems and acquiring the benefits for the vulnerable groups seriously calls for identifying and exhausting their problems. It is clear that supportive educational policies are preconditions for enhancing vulnerable educational participation as it establishes a climate for reform.

However, the policy declaration alone does not be sufficient to protect educational rights of vulnerable. Since factors that deprive their rights and hinder their educational participations are many and complex, adopting a legal frame work and establishing an institution cannot result in the desired objectives. Moreover, the mean values, policies or intents to promote educational equity should be accompanied by action oriented policy statements so that the programs can necessary make them real. Unless the intents to promote educational equity should be seriously followed by stakeholders all efforts would remain to be result less. In general, no clear mechanism was available to follow up problems faced to vulnerable. Particularly, HIV/AIDS victims are not entitled to any rights conferred to them, because though there is an institutional framework established in DBU by the name of HIV center their role is minimal.

With this findings we would like to conclude that, though there are certain supports and way outs tried on the part of the university, it is too far to become conform to the rights of students under the category of vulnerable groups in accordance with the level and standards provided

by international and national instruments. Hence, the university in order promotes and ensures the rights of vulnerable groups expected to do more and have to establish a separate office responsible to protect and the rights of vulnerable groups.

Generally, Educational rights is fundamental human rights recognized both in national as well as international legal instruments as essential to the life of individuals and community at large, and provides for personal, social and economic growth and it enables persons in the category of vulnerable to develop their skill and realize their full potential, it is more than necessary to ascertain the right to education as it is putted in international and national legislations. Further, Ethiopia had ratified many conventions and program of actions which obliged signatory states to realize such right as provided in the given convention. Hence, even the government is bound to take comprehensive measures to realize their rights.

5.2. Recommendations

Based on the findings of the research and the causes of the problems identified we would like recommend the following points.

- ❖ Throughout this study we have find that there are a lot of problems faced by students with visual impaired because of many activities, particularly building undertaken in this compound didn't take into account the interest of student with visual impairment, accordingly we recommend that, the university while building the construction take into account the building proclamation stipulated above in order to ensure the accessibility of building to students with mobility problems.
- ❖ The study also shows as there was a problem in the learning-teaching process, which suggests that, the way of delivering and learning process and the barrier it had created given insufficient attention, and despite some valuable interventions it remains the most difficult area to address. It is therefore, important to address and give sufficient attention on the nature of teaching and learning process that create barrier to those vulnerable.
- ❖ The evidence collected in this research shows that student in the category of vulnerable groups get limited, even no for those other than visually impaired, financial resource that would help them to succeed in their education. Providing adequate financial support for vulnerable groups, particularly for students with disabilities will reduce the problem they will face during their education because of lack of finance.

- ❖ The research finding shows that the university communities have low awareness about vulnerability issues. It is therefore, important to raise awareness for the students as well as entire university's community on the issue of vulnerability. In this regard the university by establishing an independent institution that plays an important counseling and advocacy role to raise the awareness of the university's community.
- ❖ Follow up those vulnerable students get equal benefits from the educational services provided by the university on equal base with other. Service should be provided on the principle of human rights and universal access.
- ❖ More importantly, it is better to design and prepare accessible course and instruction material which would not create barrier for students with disabilities.
- ❖ Providing adequate support based on their specific need. For example, students with visual impairments need reader during examination and students with hearing impairment need sign language interpreter and even the building of DBU should be maintained in the manner suitable for them. The university has the burden to provide this.
- ❖ Further, we recommend the university to come up with a comprehensive policy statement towards specifically and rightly address the issue of students under the category of vulnerable groups and ensuring the protection of their human rights.
- ❖ We also recommend that as to the university establish independent institution for vulnerable group so as to look after their problem genuinely and to enable them to use of their protected rights.
- ❖ As we have seen in this paper elsewhere with regard to HIV/AIDS victim the university focused on prevention and promotion only. So, the university should have to identify HIV victims in order to realize the enjoyment of their right as accorded on the paper.
- ❖ Ensuring constitutionally guaranteed rights for female students by allowing affirmative action by all possible means in full sense in line with constitution.
- ❖ The disabilities center should discern students with motor disabilities by its own initiation and render all necessary services in order to avail of their right as any other disabled students.

- ❖ Further, we recommend the university to come up with a comprehensive policy statement towards specifically and rightly address the issue of students under the category of vulnerable groups and ensuring the protection of their human rights.

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